



National Health Service Reorganisation Act 1973

1973 CHAPTER 32

An Act to make further provision with respect to the national health service in England and Wales and amendments of the enactments relating to the national health service in Scotland; and for purposes connected with those matters. [5th July 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

ADMINISTRATION

Functions of Secretary of State

1. It shall be the duty of the Secretary of State to arrange for the reorganisation in accordance with this Act of the national health service established in pursuance of section 1 of the National Health Service Act 1946. Reorganisation of national health service. 1946 c. 81.

2.—(1) Without prejudice to his powers apart from this sub-section, the Secretary of State shall have power— General powers and duties of Secretary of State to provide services.

(a) to provide such services as he considers appropriate for the purpose of discharging any duty imposed on him by the Health Service Acts; and

(b) to do any other thing whatsoever which is calculated to facilitate, or is conducive or incidental to, the discharge of such a duty.

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(2) It shall be the duty of the Secretary of State to provide throughout England and Wales, to such extent as he considers necessary to meet all reasonable requirements,—

- (a) hospital accommodation ;
- (b) other accommodation for the purpose of any service provided under the Health Service Acts ;
- (c) medical, dental, nursing and ambulance services ;
- (d) such other facilities for the care of expectant and nursing mothers and young children as he considers are appropriate as part of the health service ;
- (e) such facilities for the prevention of illness, the care of persons suffering from illness and the after-care of persons who have suffered from illness as he considers are appropriate as part of the health service in place of arrangements of a kind which immediately before the passing of this Act it was the function of local health authorities to make in pursuance of section 12 of the Health Services and Public Health Act 1968 ;
- (f) such other services as are required for the diagnosis and treatment of illness ;

1968 c. 46.

and regulations may provide for the making and recovery of charges in respect of facilities designated by the regulations as facilities provided in pursuance of paragraph (d) or (e) of this subsection.

(3) The functions exercisable by local health authorities and the Greater London Council by virtue of sections 21 and 24 to 27 of the principal Act and sections 10 and 11 of the said Act of 1968 (which relate to the provision of certain health services by those bodies) shall cease to be exercisable by those bodies ; but nothing in this section affects the provisions of Part IV of the principal Act (which relates to arrangements with practitioners for the provision of medical, dental, ophthalmic and pharmaceutical services).

Medical and
dental service
for pupils.

3.—(1) It shall be the duty of the Secretary of State to make provision for the medical and dental inspection at appropriate intervals of pupils in attendance at schools maintained by local education authorities and for the medical and dental treatment of such pupils.

(2) Without prejudice to the powers of the Secretary of State apart from this subsection, he may—

- (a) by arrangement with any local education authority, make provision for any medical or dental inspection or treatment of—
 - (i) senior pupils in attendance at any educational establishment, other than a school, which is maintained by the authority and at which full-time further education is provided, or

(ii) any child or young person who, in pursuance of special arrangements made for him by the authority by virtue of section 56 of the Education Act 1944, is receiving primary or secondary education otherwise than at a school; PART I
1944 c. 31.

(b) by arrangement with the proprietor of any educational establishment which is not maintained by a local education authority, make any such provision in respect of junior or senior pupils in attendance at the establishment.

(3) A local education authority shall not make an arrangement in pursuance of the preceding subsection in respect of such an establishment as is mentioned in paragraph (a)(i) of that subsection except by agreement with the governors of the establishment; and an arrangement made in pursuance of paragraph (b) of the preceding subsection may include provision for the making of payments by the proprietor in question.

(4) It shall be the duty of the local education authorities by which schools (other than voluntary schools) are maintained and of the managers or governors of voluntary schools to make available to the Secretary of State such accommodation as is appropriate for the purpose of assisting him to make such provision as is mentioned in subsection (1) of this section for pupils in attendance at the schools.

(5) In this section expressions to which meanings are assigned by section 114(1) of the Education Act 1944 have those meanings.

4. It shall be the duty of the Secretary of State to make Family arrangements, to such extent as he considers necessary to meet all reasonable requirements in England and Wales, for the giving of advice on contraception, the medical examination of persons seeking advice on contraception, the treatment of such persons and the supply of contraceptive substances and appliances; and it is hereby declared that the power conferred by section 1(1) of the National Health Service Act 1952 to provide for the making and recovery of charges includes power to provide for the making and recovery of charges for the supply of any such substances or appliances. Family planning service.
1952 c. 25.

Local administration

5.—(1) It shall be the duty of the Secretary of State to establish by order in accordance with Part I of Schedule 1 to this Act— Regional and Area Health Authorities, Family Practitioner Committees and special health authorities.

(a) authorities, to be called Regional Health Authorities, for such regions in England as he may by order determine; and

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- (b) authorities, to be called either Area Health Authorities or Area Health Authorities (Teaching) in accordance with the following subsection, for such areas in Wales and the said regions as he may by order determine ;

and orders determining regions or areas in pursuance of this subsection shall be separate from orders establishing authorities for the regions or areas.

(2) An order establishing an Authority in pursuance of paragraph (b) of the preceding subsection may provide for it to be called an Area Health Authority (Teaching) if and only if the Secretary of State is satisfied that the Authority is to provide for a university or universities substantial facilities for undergraduate or post-graduate clinical teaching ; and where the Secretary of State is satisfied that an Area Health Authority is to provide or is providing such facilities he may provide by order for the Authority to be called an Area Health Authority (Teaching) and where he is satisfied that an Area Health Authority (Teaching) no longer provides such facilities he may provide by order for the Authority to be called an Area Health Authority.

(3) It shall be the duty of the Secretary of State, before providing that an Authority shall be called or cease to be called an Area Health Authority (Teaching), to consult the university or universities concerned with the facilities in question.

(4) Any reference in the following provisions of this Act to an Area Health Authority includes a reference to an Area Health Authority (Teaching) unless the context otherwise requires.

(5) It shall be the duty of each Area Health Authority to establish for its area, in accordance with Part II of Schedule 1 to this Act, a body which shall be called a Family Practitioner Committee.

(6) If the Secretary of State considers that a special body should be established for the purpose of performing any functions which he may direct the body to perform on his behalf, or on behalf of an Area Health Authority or a Family Practitioner Committee, he may by order establish a body for that purpose and, subject to the provisions of Part III of Schedule 1 to this Act, make such further provision relating to the body as he thinks fit ; and a body established in pursuance of this subsection shall, without prejudice to the power conferred by subsection (3) of the following section to allocate a particular name to the body, be called a special health authority.

6.—(1) It shall be the duty of the Secretary of State to exercise the powers conferred on him by subsection (1) of the preceding section and the following subsection so as to secure—

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Provisions
supple-
mentary to
s. 5.

- (a) that the regions determined in pursuance of those subsections together comprise the whole of England, that the areas so determined together comprise the whole of Wales and those regions and that no region includes part only of any area ; and
- (b) that the provision of health services in each region can conveniently be associated with a university which has a school of medicine or with two or more such universities.

(2) The Secretary of State may by order vary the region of a Regional Health Authority or the area of an Area Health Authority whether or not the variation entails the determination of a new or the abolition of an existing region or area, and an order made by virtue of this subsection may (without prejudice to the generality of section 56(4) of this Act) contain such provisions for the transfer of officers, property, rights and liabilities as the Secretary of State thinks fit ; but it shall be the duty of the Secretary of State before he makes an order in pursuance of this subsection to consult with respect to the order such bodies as he may recognise as representing officers who in his opinion are likely to be transferred or affected by transfers in pursuance of the order and such other bodies as he considers are concerned with the order.

(3) Without prejudice to the generality of the said section 56(4) or of the power to make an order conferred by subsection (6) of the preceding section, an order made in pursuance of that subsection may in particular contain provisions as to the membership of the body established by the order, the transfer to the body of officers, property, rights and liabilities and the name by which the body is to be known ; but it shall be the duty of the Secretary of State before he makes such an order to consult with respect to the order such bodies as he may recognise as representing officers who in his opinion are likely to be transferred or affected by transfers in pursuance of the order.

(4) The provisions of Part III of Schedule 1 to this Act shall, so far as applicable, have effect in relation to an Authority or other body established in pursuance of the preceding section.

7.—(1) The Secretary of State may direct a Regional Health Authority, an Area Health Authority of which the area is in Wales or a special health authority to exercise on his behalf such of his functions relating to the health service as are specified

Functions of
authorities.

PART I in the directions (including any of his functions under enactments relating to mental health and nursing homes but excluding the duty imposed on him by section 1(1) of the principal Act to secure the effective provision of the services mentioned in subsection (3) of this section); and subject to the following subsection it shall be the duty of the body in question to comply with the directions.

(2) A Regional Health Authority may direct any Area Health Authority of which the area is included in its region to exercise such of the functions exercisable by the Regional Health Authority by virtue of the preceding subsection as are specified in the directions and it shall be the duty of the Area Health Authority to comply with the directions; but if the Secretary of State directs a Regional Health Authority to secure that any of those functions specified in his directions are or are not exercisable by an Area Health Authority it shall be the duty of the Regional Health Authority to comply with his directions.

(3) It shall be the duty of each Family Practitioner Committee in accordance with regulations—

- (a) to administer, on behalf of the Area Health Authority by which the Committee was established, the arrangements made in pursuance of the Health Service Acts for the provision of general medical services, general dental services, general ophthalmic services and pharmaceutical services for the area of the Authority; and
- (b) to perform such other functions relating to those services as may be prescribed;

and if it appears to the Secretary of State that, in consequence of regulations made by virtue of the preceding provisions of this subsection, references to an Area Health Authority in particular provisions of the Health Service Acts should be construed as references to a Family Practitioner Committee, he may by regulations provide accordingly.

(4) Regulations may provide for functions exercisable by virtue of the preceding provisions of this section by a body other than an Area Health Authority, or exercisable by virtue of any provisions of the Health Service Acts by an Area Health Authority, to be exercisable on behalf of the body in question—

- (a) by an equivalent body or by another body of which the members consist only of the body and equivalent bodies;
- (b) by a committee, sub-committee or officer of the body or an equivalent body or such another body as aforesaid;

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- (c) in the case of functions exercisable by an Area Health Authority, by a special health authority, an officer of such an authority or a Family Practitioner Committee ;
- (d) in the case of functions exercisable by a Family Practitioner Committee, by a special health authority, an officer of such an authority or an officer of an Area Health Authority ;

and for the purposes of this subsection a Regional or Area Health Authority or a Family Practitioner Committee is equivalent to another body of the same name and a special health authority is equivalent to another such authority ; but nothing in this subsection shall be construed as precluding any body from acting by an agent where it is entitled so to act apart from this subsection.

(5) The Secretary of State may give directions with respect to the exercise of any functions exercisable by any body by virtue of the preceding provisions of this section or by an Area Health Authority by virtue of Part IV of the principal Act ; and subject to any directions given by the Secretary of State by virtue of this subsection—

- (a) a Regional Health Authority may give directions with respect to the exercise, by an Area Health Authority of which the area is included in its region, of any functions exercisable by the Area Health Authority by virtue of subsection (2) of this section ;
- (b) an Area Health Authority may give directions with respect to the exercise by the Family Practitioner Committee established by it of any functions which are exercisable by the Committee by virtue of subsection (3) of this section and are prescribed for the purposes of this paragraph ;

and it shall be the duty of the body in question to comply with the directions.

(6) Any directions given by the Secretary of State in pursuance of this section shall be given either by regulations or by an instrument in writing except that any such directions in respect of functions conferred on the Secretary of State by section 9(1) or (2) of this Act and any such directions in pursuance of subsection (1) of this section in respect of functions relating to special hospitals shall only be given by regulations, and any directions given by an Authority in pursuance of this section shall be given by an instrument in writing.

(7) Directions given and regulations made in pursuance of this section in respect of a function—

- (a) shall not, except in prescribed cases, preclude a body or person by whom the function is exercisable apart from

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the directions or regulations from exercising the function ; and

- 1889 c. 63. (b) may in the case of directions given by an instrument in writing be varied or revoked by subsequent directions given in pursuance of this section (without prejudice to the operation of section 32(3) of the Interpretation Act 1889 in the case of directions given by regulations) ;

so however that an Area Health Authority shall not be entitled to exercise any function which by virtue of subsection (3) of this section is exercisable by the Family Practitioner Committee established by the Authority.

**Local advisory
committees.**

8.—(1) Where the Secretary of State is satisfied that a committee formed for the region of a Regional Health Authority is representative of persons of any of the following categories, namely—

- (a) the medical practitioners of the region ; or
- (b) the dental practitioners of the region ; or
- (c) the nurses and midwives of the region ; or
- (d) the registered pharmacists of the region ; or
- (e) the ophthalmic and dispensing opticians of the region,

then, subject to the following subsection, it shall be the duty of the Secretary of State to recognise the committee ; and a committee recognised in pursuance of this subsection shall be called the Regional Medical, Dental, Nursing and Midwifery, Pharmaceutical or Optical Committee, as the case may be, for the region in question.

(2) Where the Secretary of State is satisfied that a committee formed for the region of a Regional Health Authority is representative of—

- (a) any category of persons (other than a category mentioned in the preceding subsection) who provide services forming part of the health service ; or
- (b) two or more of any of the categories of persons mentioned in the preceding subsection and the preceding paragraph,

and that it is in the interests of the health service to recognise the committee, it shall be the duty of the Secretary of State to recognise it in pursuance of this subsection and determine that it shall be known by a name specified in the determination ; and where a committee recognised in pursuance of this subsection appears to the Secretary of State to represent categories of persons which include a category mentioned in the preceding subsection, he shall not be required by virtue of that subsection to recognise a committee representing persons of that category.

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(3) The Secretary of State may, by notice in writing served on any member of a committee recognised in pursuance of this section, withdraw his recognition of the committee if he considers it expedient to do so—

- (a) where the committee is recognised in pursuance of subsection (1) or (2)(a) of this section, with a view to recognising in pursuance of subsection (2)(b) of this section another committee representing categories of persons which include the category represented by the recognised committee ;
- (b) where the committee is recognised in pursuance of the said subsection (2)(b), with a view to recognising in pursuance of any of the provisions of subsection (1) or (2) of this section other committees which together are representative of the categories in question.

(4) It shall be the duty of a committee recognised by reference to the region of a Regional Health Authority in pursuance of subsection (1) or (2) of this section—

- (a) to advise the Authority on the provision by the Authority of services of the kind provided by the categories of persons of whom the committee is representative ;
and
 - (b) to perform such other functions as may be prescribed ;
- and it shall be the duty of the Authority to consult the committee with respect to such matters and on such occasions as may be prescribed.

(5) A Regional Health Authority may defray such expenses incurred by such a committee in performing the duty imposed on the committee by the preceding subsection as the Authority considers reasonable (which may include travelling and other allowances and compensation for loss of remunerative time for members of the committee at such rates as the Secretary of State may determine with the approval of the Minister for the Civil Service).

(6) The preceding provisions of this section shall have effect in relation to Wales as if—

- (a) for references to a region of an Authority there were substituted references to Wales ;
- (b) for the words “Regional Medical” in subsection (1) there were substituted the words “Welsh Medical” ;
- (c) for the words “the Authority” in both places in subsection (4)(a) and for those words and the words “A Regional Health Authority” in subsection (5) there were substituted the words “the Secretary of State” ;
and

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(d) in subsection (4) the words following paragraph (b) were omitted.

(7) Subsections (1) to (5) of this section shall have effect in relation to an Area Health Authority of which the area is in England or Wales with the substitution for the word "Regional" of the word "Area" and for the word "region" of the word "area".

Community
Health
Councils etc.

9.—(1) It shall be the duty of the Secretary of State to establish in accordance with this section a Council for the area of each Area Health Authority or separate Councils for such separate parts of the areas of those Authorities as he thinks fit; and such a council shall be called a Community Health Council (and is hereafter in this section referred to as a "Council").

(2) The Secretary of State may if he thinks fit discharge the duty aforesaid by establishing a Council for a district which includes the areas or parts of the areas of two or more Area Health Authorities; but the Secretary of State shall be treated as not having discharged that duty unless he secures that there is no part of the area of an Area Health Authority which is not included in some Council's district.

(3) It shall be the duty of a Council—

- (a) to represent the interests in the health service of the public in its district; and
- (b) to perform such other functions as may be conferred on it by virtue of the following subsection.

(4) Provision may be made by regulations as to—

- (a) the membership of Councils (including the election by members of a Council of a chairman of the Council);
- (b) the proceedings of Councils;
- (c) the staff, premises and expenses of Councils;
- (d) the consultation of Councils by Area Health Authorities with respect to such matters and on such occasions as may be prescribed;
- (e) the furnishing of information to Councils by Area Health Authorities and the rights of members of Councils to enter and inspect premises controlled by Area Health Authorities;
- (f) the consideration by Councils of matters relating to the operation of the health service within their districts and the giving of advice by Councils to Area Health Authorities on such matters;
- (g) the preparation and publication of reports by Councils on such matters and the furnishing and publication by

Area Health Authorities of comments on the reports ;
and

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- (h) the functions to be exercised by Councils in addition to the functions exercisable by them by virtue of paragraph (a) of the preceding subsection and the preceding provisions of this subsection ;

and the Secretary of State may pay to members of Councils such travelling and other allowances (including compensation for loss of remunerative time) as he may determine with the consent of the Minister for the Civil Service.

(5) It shall be the duty of the Secretary of State to exercise his power to make regulations in pursuance of paragraph (a) of the preceding subsection so as to secure as respects each Council that—

- (a) at least one member of the Council is appointed by each local authority of which the area or part of it is included in the Council's district and at least half of the members of the Council consist of persons appointed by those local authorities ;
- (b) at least one third of the members of the Council are appointed in a prescribed manner by bodies (other than public or local authorities) of which the activities are carried on otherwise than for profit ;
- (c) the other members of the Council are appointed by such bodies, in such manner and after such consultations as may be prescribed ; and
- (d) no member of the Council is also a member of a Regional Health Authority or Area Health Authority ;

but nothing in this subsection shall affect the validity of anything done by or in relation to a Council during any period during which, by reason of a vacancy in the membership of the Council or a defect in the appointment of a member of it, a requirement included in regulations in pursuance of this subsection is not satisfied.

(6) The Secretary of State may by regulations—

(a) provide for the establishment of a body—

(i) to advise Councils with respect to the performance of their functions and to assist Councils in the performance of their functions, and

(ii) to perform such other functions as may be prescribed ; and

(b) make provision as to the membership, proceedings, staff, premises and expenses of the said body ;

and the Secretary of State may pay to members of the said body such travelling and other allowances (including compensation for loss of remunerative time) as he may determine with the consent of the Minister for the Civil Service.

PART I**(7) In this section—**

1972 c. 70.

“local authority” means the council of a London borough or of a county or district as defined in relation to England in section 270(1) of the Local Government Act 1972 or of a county or district mentioned in section 20(3) of that Act (which relates to Wales) or the Common Council of the City of London; and

“district”, in relation to a Council, means the locality for which it is established, whether that locality consists of the area or part of the area of an Area Health Authority or such an area or part together with the areas or parts of the areas of other Area Health Authorities;

and the district of a Council must be such that no part of it is separated from the rest of it by territory not included in the district.

Co-operation and assistance

Co-operation
between Health
Authorities
and local
authorities.

10.—(1) In exercising their respective functions Health Authorities and local authorities shall co-operate with one another in order to secure and advance the health and welfare of the people of England and Wales.

(2) There shall be committees, to be called joint consultative committees, who shall advise Area Health Authorities and the authorities in column 2 of the Table below on the performance of their duties under the preceding subsection and on the planning and operation of services of common concern to those authorities.

TABLE

1 <i>Area Health Authority</i>	2 <i>Associated authorities</i>
An Area Health Authority in a metropolitan county in England.	The local authority for each district wholly or partly in the area of the Authority.
An Area Health Authority in a non-metropolitan county in England, or an Area Health Authority in Wales.	The local authority for each county, and also for each district, wholly or partly in the area of the Authority.
An Area Health Authority in Greater London.	The local authority for each London borough wholly or partly in the area of the Authority. Also the Inner London Education Authority, if wholly or partly in the area of the Authority. Also the Common Council of the City of London, if in the area of the Authority.

(3) Except as provided by an order under the following provisions of this section, each joint consultative committee shall represent one or more Area Health Authorities together with one

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or more of the authorities in column 2 of the Table above, and an Area Health Authority shall be represented together with each of the authorities associated with that Authority in column 2 of the said Table in one or other of the committees (but not necessarily the same committee).

(4) The Secretary of State shall have power by order to provide for any matter relating to joint consultative committees, and such an order may in particular—

- (a) provide for the way in which the provisions of subsections (2) and (3) of this section are to be carried out, or provide for varying the arrangements set out in those subsections ;
- (b) provide, where it appears to the Secretary of State appropriate, for an Area Health Authority to be represented on a joint consultative committee together with a local or other authority whose area is not within the area of the Area Health Authority ;
- (c) afford a choice to any authorities as to the number of joint consultative committees on which they are to be represented, and provide for the case where the authorities cannot agree on the choice ;
- (d) authorise or require a joint consultative committee to appoint any sub-committee or to join with another joint consultative committee or other joint consultative committees in appointing a joint sub-committee ;
- (e) authorise or require the appointment to a joint consultative committee, or to any sub-committee, of persons who are not members of the authorities represented by the joint consultative committee ;
- (f) require the authorities represented on a joint consultative committee to defray the expenses of the committee, and of any sub-committee, in such shares as may be determined by or under the order, and provide for the way in which any dispute between those authorities concerning the expenses is to be resolved ; and
- (g) require those authorities to make reports to the Secretary of State on the work of the joint consultative committee and of any sub-committee.

(5) Before making an order under this section the Secretary of State shall consult with such associations of local authorities as appear to him to be concerned, and with any local authority with whom consultation appears to him to be desirable.

(6) In this and the three next following sections “Health Authority” means a Regional or Area Health Authority or a special health authority.

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**Supply of
goods and
services by
Secretary of
State.**

11.—(1) The Secretary of State may—

- (a) supply to local authorities, and to such public bodies or classes of public bodies as may be determined by the Secretary of State, any goods or materials of a kind used in the health service ;
- (b) make available to local authorities, and to such bodies or classes of bodies as aforesaid, any facilities (including the use of any premises and the use of any vehicle, plant or apparatus) provided by him for any service under the Health Service Acts and the services of persons employed by the Secretary of State or by a Health Authority ;
- (c) carry out maintenance work in connection with any land or building for the maintenance of which a local authority is responsible.

(2) The Secretary of State may supply or make available to persons providing general medical services, general dental services, general ophthalmic services or pharmaceutical services such goods, materials or other facilities as may be prescribed.

(3) The Secretary of State shall make available to local authorities—

- (a) any services or other facilities (excluding the services of any person but including goods or materials, the use of any premises and the use of any vehicle, plant or apparatus) provided under the Health Service Acts ;
- (b) the services provided as part of the health service by any person employed by the Secretary of State or a Health Authority ; and
- (c) the services of any medical practitioner, dental practitioner or nurse employed by the Secretary of State or a Health Authority otherwise than to provide services which are part of the health service,

so far as is reasonably necessary and practicable to enable local authorities to discharge their functions relating to social services, education and public health.

(4) It shall be the duty of the Secretary of State, before he makes the services of any officer of a Health Authority available in pursuance of subsection (1)(b) or subsection (3)(b) or (c) of this section, to consult the officer or a body recognised by the Secretary of State as representing the officer about the matter or to satisfy himself that the Health Authority has consulted the officer about the matter ; but the Secretary of State shall be entitled to disregard the preceding provisions of this subsection in a case where he considers it necessary to make the services of an officer available as aforesaid for the purpose of dealing

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temporarily with an emergency and has previously consulted such a body about the making available of services in an emergency.

(5) For the purposes of subsection (1)(b) or subsection (3)(b) or (c) of this section the Secretary of State may give such directions to Health Authorities to make services of their officers available as he considers appropriate; and it shall be the duty of a Health Authority to comply with any such directions.

(6) The powers conferred by this section may be exercised on such terms as may be agreed, including terms as to the making of payments to the Secretary of State, and such charges may be made by the Secretary of State in respect of services or facilities provided under subsection (3) of this section as may be agreed between the Secretary of State and the local authority or, in default of agreement, as may be determined by arbitration.

(7) The Secretary of State may by order provide that, in relation to a vehicle which is made available by him in pursuance of this section and is used in accordance with the terms on which it is so made available, the Vehicles (Excise) Act 1971 and Part VI of the Road Traffic Act 1972 shall have effect with such modifications as are specified in the order.

(8) Any power to supply goods or materials conferred by this section includes a power to purchase and store them and a power to make arrangements with third parties for the supply of the goods or materials by those third parties.

(9) In subsection (1) of this section—

“maintenance work” includes minor renewals, minor improvements and minor extensions; and

“public bodies” includes public bodies in Northern Ireland.

12.—(1) In the Local Authorities (Goods and Services) Act 1970 (supply of goods or services to public bodies) the expression “public body” shall include any Health Authority and, so far as relates to his functions under the Health Service Acts, shall include the Secretary of State.

Supply of goods and services by local authorities.
1970 c. 39.

The preceding provisions of this subsection shall have effect as if made by an order under section 1(5) of the said Act of 1970 and accordingly may be varied or revoked by such an order.

(2) Every local authority shall make available to Health Authorities acting in the area of the local authority the services of persons employed by the local authority for the purposes of the authority's functions under the Local Authorities Social Services Act 1970 so far as is reasonably necessary and prac-

1970 c. 42.

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licable to enable Health Authorities to discharge their functions under the Health Service Acts.

(3) Such charges may be made by a local authority for acting under the preceding subsection as may be agreed between the local authority and the Secretary of State or, in default of agreement, as may be determined by arbitration.

Voluntary
organisations
and other
bodies.

13.—(1) The Secretary of State may, where he considers it appropriate, arrange with any person or body (including a voluntary organisation) for that person or body to provide, or assist in providing, any service under the Health Service Acts.

(2) The Secretary of State may make available—

(a) to any person or body (including a voluntary organisation) carrying out any arrangements under the preceding subsection ; or

(b) to any voluntary organisation eligible for assistance under section 64 or section 65 of the Health Services and Public Health Act 1968 (assistance made available by the Secretary of State or local authorities),

1968 c. 46.

any facilities (including goods or materials, or the use of any premises and the use of any vehicle, plant or apparatus) provided by him for any service under the Health Service Acts and, where anything is so made available, the services of persons employed by the Secretary of State or by a Health Authority in connection with it.

(3) The powers conferred by this section may be exercised on such terms as may be agreed, including terms as to the making of payments by or to the Secretary of State, and any goods or materials may be made available either temporarily or permanently ; and subsection (7) of section 11 of this Act shall have effect in relation to a vehicle made available in pursuance of this section as if for the reference to that section there were substituted a reference to this section.

(4) Any power to supply goods or materials conferred by this section includes a power to purchase and store them and includes a power to make arrangements with third parties for the supply of goods or materials by those third parties.

(5) In this section “voluntary organisation” means a body the activities of which are carried on otherwise than for profit, but does not include any public or local authority.

PART II

**ABOLITION OF CERTAIN AUTHORITIES AND TRANSFER OF
PROPERTY, STAFF AND ENDOWMENTS ETC.**

Abolition of certain authorities

Abolition of
authorities.

14.—(1) All Regional Hospital Boards, Hospital Management Committees and Executive Councils, the Joint Pricing Committee for England, the Welsh Joint Pricing Committee and, except as

PART II

provided by the following section, all Boards of Governors shall cease to exist on the appointed day; and on that day any authority which is a local health authority by virtue of section 19 of the principal Act shall cease to be a local health authority and all joint boards constituted in pursuance of that section shall cease to exist.

(2) The Secretary of State may by order make such provision as he considers appropriate in anticipation or in consequence of the abolition by the preceding subsection of any body or in connection with the winding up of the body's affairs; and if a body abolished by that subsection has, as respects a period before the appointed day, not performed a duty imposed on the body by subsection (2) or (3) of section 55 of the principal Act (which relate to accounts), then—

- (a) it shall be the duty of the Secretary of State to secure that the duty so imposed is performed by a Regional or Area Health Authority or special health authority determined by him; and
- (b) that section shall have effect in relation to the body and period in question as if for references to each financial year in subsections (3) and (4) there were substituted references to that period and as if the word "annual" in subsection (3) were omitted.

15.—(1) The Secretary of State may by order provide that the preceding section shall, while the order is in force, not apply to any body specified in the order which is the Board of Governors of a teaching hospital mentioned in Schedule 2 to this Act. Preservation of certain Boards of Governors.

(2) An order made by virtue of the preceding subsection—

- (a) must be made before the appointed day except in a case falling within paragraph (c) of this subsection;
- (b) shall provide for the order to cease to have effect, unless it is previously revoked, on the expiration of a period specified in the order (which shall not be longer than five years beginning with the date on which the order is made);
- (c) may be made after the appointed day in respect of a preserved Board for the purpose of securing that the Board continues to be a preserved Board for a further period; and
- (d) may at any time be revoked by order by the Secretary of State;

and it shall be the duty of the Secretary of State, before he makes an order in pursuance of the preceding subsection or paragraph (d) of this subsection, to consult the University of London and the Board of Governors in question about the order.

PART II

(3) The Secretary of State may by order provide that, in relation to a preserved Board and any person, thing, right, liability or other matter whatsoever connected with the Board,—

- (a) any provision of this Act which repeals or amends any enactment and is specified in the order shall not apply ;
- (b) any enactment which, apart from any provision made by virtue of the preceding paragraph, is repealed or amended by this Act shall have effect with such modifications as are specified in the order ; and
- (c) such provisions of this Act and any instrument in force by virtue of this Act as are specified in the order shall have effect with such modifications as are so specified ;

but nothing in this Act, and in particular nothing in any provision of this Act amending section 55 of the principal Act (which relates to accounts), shall affect the application of that section to a preserved Board.

(4) The Secretary of State may by order—

- (a) provide that a preserved Board shall cease to exercise functions with respect to the administration of any hospital specified in the order ;
- (b) confer on a preserved Board such functions as are specified in the order with respect to the administration of a hospital so specified (whether or not apart from the order the Board has functions with respect to the administration of that hospital) ; and
- (c) provide that this Act and any instrument in force by virtue of this Act shall, in relation to any person, thing, right, liability or other matter whatsoever connected with the hospital in question, have effect with such modifications as are specified in the order.

(5) Where a Board of Governors ceases to be a preserved Board this Act and any instrument in force by virtue of this Act shall, in relation to the Board and any person, thing, right, liability and other matter whatsoever connected with the Board, have effect with the substitution of a reference to the date of the cesser for the first reference in subsection (1) of the preceding section and the reference in subsection (2) of that section to the appointed day and with such further modifications as the Secretary of State may by order specify.

(6) In this Act “preserved Board” means a Board of Governors to which by virtue of this section the preceding section does not for the time being apply ; and any question whether a person, thing, right, liability or other matter whatsoever is for the purposes of this section connected with a Board of Governors or a hospital shall be determined by the Secretary of State.

Transfer of property etc.

PART II

16.—(1) Subject to subsection (4) of this section, on the appointed day there shall by virtue of this subsection be transferred to and vest in the Secretary of State—

Transfers
from local
authorities.

(a) all property which immediately before that day—

(i) was held by a local authority solely for the purposes of one or more of its health functions, or

(ii) was held by a local authority otherwise than as mentioned in the preceding sub-paragraph and was used by the authority wholly or mainly for the purposes there mentioned ; and

(b) all rights and liabilities which were acquired or incurred by a local authority wholly or mainly in the performance of its health functions and to which the authority was entitled or subject immediately before the appointed day.

(2) The Secretary of State may by order—

(a) make provision for securing that where any property has, at any time during the period beginning with 16th November 1972 and ending immediately before the appointed day—

(i) been held by a local authority as mentioned in paragraph (a)(i) of the preceding subsection, or

(ii) been held and used by a local authority as mentioned in paragraph (a)(ii) of that subsection,

but in consequence of anything done otherwise than in the ordinary course of business is not so held or, as the case may be, held and used by the authority immediately before the appointed day, the property is treated for the purposes of the preceding subsection as so held or held and used by the authority immediately before the appointed day ;

(b) make provision as to the manner of determining, and as to the matters which are to be taken into account or disregarded for the purpose of determining, whether immediately before the appointed day any property was held or held and used as mentioned in the preceding subsection or any local authority was entitled or subject to rights or liabilities acquired or incurred as there mentioned ;

(c) make provision for securing that where any premises transferred to the Secretary of State by virtue of this section contain accommodation which was used immediately before the appointed day for the purposes of functions of a local authority other than health functions, the accommodation may continue to be used

PART II

by the authority for those purposes on such terms and for such period as may be agreed between the Secretary of State and the authority or, in default of agreement, as may be determined in a manner specified in the order ;

- (d) make provision for securing that where any premises not transferred to the Secretary of State by virtue of this section contain accommodation which was used immediately before the appointed day for the purposes of health functions of a local authority, the accommodation may be used by the Secretary of State for similar purposes on such terms and for such period as aforesaid ;
- (e) provide that such as may be specified in the order of the rights and liabilities transferred to the Secretary of State by virtue of this section shall be enforceable by and against a Regional or Area Health Authority or special health authority so specified instead of by and against the Secretary of State ;
- (f) make provision as to the persons on whom shall lie the burden of proving, for the purposes of provision made by virtue of paragraph (a) of this subsection, that a particular thing was done in the ordinary course of business.

(3) The preceding provisions of this section shall have effect in relation to a local education authority as if for any reference to a local authority and health functions there were substituted respectively a reference to a local education authority and functions under the following enactments (which relate to medical and dental inspection and treatment) namely, section 48(1) and (3) of the Education Act 1944, section 78 of that Act so far as that section relates to such inspection and treatment and section 4 of the Education (Miscellaneous Provisions) Act 1953.

1944 c. 31.

1953 c. 33.

(4) The Secretary of State may at any time before the appointed day provide by order that property, rights or liabilities specified in the order shall not be transferred to him by virtue of this section ; and nothing in subsections (1) to (3) of this section applies to property, rights or liabilities to which section 25 of this Act applies.

(5) Where any property transferred from a local authority or a local education authority to the Secretary of State by virtue of this section consists of uncompleted buildings which were being constructed by the authority, the authority may complete the buildings on such terms as it may agree with the Secretary of State.

(6) In this section—

PART II

“health functions” means—

- (a) functions under Part III and section 65 of the principal Act and sections 10 to 12 of the Health Services and Public Health Act 1968 so far as those functions do not stand referred to social services committees by virtue of section 2 of the Local Authority Social Services Act 1970 ; 1968 c. 46. 1970 c. 42.
- (b) functions under the National Health Service (Family Planning) Act 1967 and the National Health Service (Family Planning) Amendment Act 1972 ; 1967 c. 39. 1972 c. 72.
- (c) functions under section 196 of the Public Health Act 1936 so far as those functions relate to the diagnosis and treatment of diseases ; and 1936 c. 49.
- (d) functions under the enactments mentioned in section 41(1) of this Act ; and

“local authority” means—

- (a) except in relation to functions mentioned in paragraph (d) above and functions of the Greater London Council, any authority which immediately before the passing of this Act was a local health authority ;
- (b) in relation to functions mentioned in paragraph (d) above, a local authority within the meaning of section 41 of this Act ;
- (c) in relation to functions of the Greater London Council, that Council,

and in relation to functions mentioned in paragraph (c) of the preceding definition includes any authority, in addition to an authority or body mentioned in paragraph (a) of this definition, on which functions are conferred by the said section 196.

17.—(1) All property, rights and liabilities which immediately before the appointed day were property, rights and liabilities of an Executive Council or either of the pricing committees mentioned in section 14(1) of this Act shall by virtue of this subsection be transferred to and vest in the Secretary of State on that day ; and the Secretary of State may by order provide for such of those rights and liabilities as are specified in the order to be enforceable by and against an Area Health Authority or special health authority or Family Practitioner Committee so specified instead of by and against the Secretary of State.

(2) The Secretary of State may by order make such provision as he considers is appropriate in anticipation or in consequence of any transfer which is to be or has been made by virtue of the preceding subsection.

PART II

Transfer of staff

Transfers to
employment
by new
authorities
and social
service
authorities.

18.—(1) The Secretary of State may by order make provision—

(a) for the transfer on the appointed day to the employment of new health authorities designated by or under the order of persons so designated who immediately before that day were—

(i) employed by old health authorities so designated, or

(ii) employed by local health authorities or by the Greater London Council and so employed wholly or mainly for the purposes of functions mentioned in paragraphs (a) and (b) of the definition of health functions in section 16(6) of this Act, or

(iii) employed by local education authorities wholly or mainly for the purposes of functions under the enactments mentioned in section 16(3) of this Act, or

(iv) employed as relevant staff or speech therapists by local education authorities wholly or mainly for the purposes of providing special educational treatment in pursuance of section 34 of the Education Act 1944 and ascertaining whether children require such treatment, or

(v) employed by local authorities within the meaning of section 41 of this Act wholly or mainly for the purposes of functions under the enactments mentioned in subsection (1) of that section ;

(b) for requiring any such authority, body or Council as is mentioned in sub-paragraphs (i) to (v) of the preceding paragraph and is designated by or under the order to make, after consulting new health authorities so designated if the order requires them to be consulted, schemes for the transfer on the appointed day to the employment of new health authorities designated by or under the schemes of persons designated by or under the schemes who were employed as mentioned in the preceding paragraph ;

(c) for any scheme made in pursuance of the preceding paragraph to be varied or revoked, at any time before the appointed day, by a subsequent scheme so made ;

(d) for requiring an authority or other person by whom a scheme is made in pursuance of this subsection to

submit the scheme or provisions of it to the Secretary of State for his approval, and for requiring the authority or other person to make, before the appointed day, such changes in the scheme as the Secretary of State may direct.

(2) The Secretary of State may by order make provision—

- (a) for the transfer on the appointed day to the employment of new health authorities of persons to whom this subsection applies ;
- (b) for requiring public health authorities designated by or under the order to make schemes for the transfer on the appointed day, to the employment of new health authorities designated by or under the schemes, of persons to whom this subsection applies ;
- (c) as to the manner of determining whether an individual is a person to whom this subsection applies and which authority is the new health authority to whose employment such a person is to be transferred ;
- (d) for determining, in the case of a person who apart from provision made by virtue of this paragraph falls to be transferred to the same employment or different employments by virtue of this subsection and any other provision of this Act, which of the provisions in question are not to apply in his case ;

and it shall be the duty of the Secretary of State, before he makes an order in pursuance of this subsection, to consult with respect to the order such bodies as appear to him to represent public health authorities and to be concerned with the order and any other body which he considers it desirable to consult about the order.

(3) The persons to whom the preceding subsection applies are—

(a) relevant staff employed immediately before the appointed day—

(i) by public health authorities wholly or mainly for the purposes of any functions of such authorities under sections 143, 147, 153 and 166 to 170 of the Public Health Act 1936, sections 40 and 41 of the 1936 c. 49. Public Health Act 1961 and sections 49 to 52 of 1961 c. 64. the Health Services and Public Health Act 1968 1968 c. 46. (which relate to the control of infectious disease and food poisoning) and Part IX of the Public Health Act 1936 (which relates to common lodging houses), or

(ii) by public health authorities, in their capacities as food and drugs authorities within the meaning

PART II
1955 c. 16
(4 Eliz. 2.).

of the Food and Drugs Act 1955, wholly or mainly for the purposes of any functions of food and drugs authorities under that Act; and

1936 c. 49.

- (b) persons employed immediately before the appointed day wholly or mainly in premises provided in pursuance of section 196 of the Public Health Act 1936 (which relates to laboratories) and transferred to the Secretary of State by section 16 of this Act.

1970 c. 42.

(4) The Secretary of State may by order make provision for the transfer—

- (a) to the employment of bodies who are local authorities for the purposes of the Local Authority Social Services Act 1970 of persons of descriptions specified in the order who are for the time being employed by old health authorities or new health authorities wholly or mainly for the purposes of functions which stand referred to social services committees by virtue of section 2 of that Act;
- (b) to the employment of new health authorities of relevant staff and speech therapists who are for the time being employed wholly or mainly for the purposes mentioned in the preceding paragraph by bodies who are such local authorities as are there mentioned;

and an order made by virtue of this subsection may include provision—

- (i) for transfers in pursuance of the order to be made on such days as may be determined by or under the order; and
- (ii) as to the manner of determining whether an individual is a person liable to be transferred by virtue of this subsection and which authority is the authority to whose employment such a person is to be transferred.

(5) A person transferred by virtue of paragraph (a) of the preceding subsection to the employment of such a body as is mentioned in that paragraph shall not be required in the course of that employment to perform duties otherwise than at or in connection with a hospital unless he has consented to perform such duties.

(6) The Secretary of State may by order make provision for the transfer to the employment of any new health authorities, with effect from such dates (whether before or after the making of the order) as may be specified in the order, of persons who—

- (a) were employed by an old health authority, or by another authority in its capacity as a local health authority,

immediately before the date when the authority ceased to exist or to be a local health authority ; and

- (b) are not on that date transferred to the employment of a new health authority by virtue of any provision of subsections (1) to (4) of this section.

(7) In this section—

“new health authority” means any Regional or Area Health Authority and any special health authority ;

“old health authority” means any Regional Hospital Board, Board of Governors or Executive Council and any pricing committee mentioned in section 14(1) of this Act ;

“public health authority” means the council of a county, borough (including a London borough), urban district and rural district, the Common Council of the City of London and a port health authority constituted in pursuance of section 2 of the Public Health Act 1936 ; 1936 c. 49. and

“relevant staff” means persons of any of the following categories, namely, medical practitioners, persons registered or enrolled within the meaning of the Nurses Act 1957 and persons registered by 1957 c. 15. a board in respect of a profession in pursuance of the Professions Supplementary to Medicine Act 1960. 1960 c. 66.

19.—(1) Without prejudice to the duty imposed on the Secretary of State by subsection (2) of the preceding section, it shall be the duty of the Secretary of State, before he makes an order in pursuance of that section or the following subsection, to consult with respect to the order such bodies as he may recognise as representing persons who in his opinion are likely to be transferred or affected by transfers in pursuance of the order. Provisions supplementary to s. 18.

(2) It shall be the duty of the Secretary of State by order to make provision for securing, in the case of a person transferred to the employment of any body by virtue of the preceding section,—

- (a) that, while he is in the employment of that body and has not been served with a notice in writing stating that it is served for the purposes of this subsection and specifying such new terms and conditions of employment as are mentioned in the following paragraph, the scale of his remuneration and, taken as a whole, the other terms and conditions of his employment by that body are not less favourable to him

PART II

than were immediately before the transfer those of the employment from which the transfer was made ;

(b) that any new terms and conditions determined by that body for his employment by that body are such that—

(i) so long as he is engaged in duties reasonably comparable to the duties in which immediately before the transfer he was engaged in the employment from which the transfer was made, the scale of his remuneration and, taken as a whole, the other terms and conditions of his employment by that body are not less favourable to him than were, immediately before the transfer, those of the employment from which the transfer was made, and

(ii) so long as he is engaged in duties not so comparable, the terms and conditions of his employment by that body (excluding terms as to remuneration) are, taken as a whole, not less favourable than as mentioned in the preceding sub-paragraph ;

(c) that for the purposes of any enactment specified in the order the employments from which and to which he was transferred by virtue of the preceding section are treated as one continuous employment ;

and an order made in pursuance of this subsection may contain provision for the determination of questions arising with respect to the effect in relation to any person of provision made by virtue of paragraphs (a) to (c) of this subsection.

(3) An order or scheme made by virtue of any provision of the preceding section except subsection (4)(a) may include provision for securing that, in determining whether a person was at a particular time employed by an authority wholly or mainly for the purposes of functions of the authority of a particular kind mentioned in that section, any functions of that authority which are of a different kind so mentioned and for the purposes of which the person was at that time also employed by the authority may be treated as functions of the particular kind in question ; and it is hereby declared that, in determining in pursuance of the preceding section whether a person was at any time employed by an authority wholly or mainly for the purposes of functions of the authority, any employment of his at that time which was not employment by the authority is to be disregarded.

(4) An order made by virtue of the preceding section may include provision—

(a) for the determination of any question arising in connection with the order as to whether a person is or

was employed in a particular capacity or wholly or mainly for particular purposes ;

- (b) for enabling any person who objects, on such grounds as may be specified in the order, to his transfer in pursuance of the order or a scheme made by virtue of the order to make in respect of the transfer representations to whichever of the two Commissions appointed in pursuance of the following section is appropriate in his case, and for requiring the Commission to advise the person who made the order or scheme or, if that person has ceased to exist, to advise the Secretary of State on whether it would be appropriate in consequence of the representations to amend the order or scheme before the day when transfers take effect in pursuance of it or to transfer a person on or after that day from the employment to which he is transferred in pursuance of the order or scheme ;

- (c) for the transfer of a person in consequence of such representations—

(i) from the employment of a new health authority to the employment of a different new health authority or, except where the person in question was transferred in pursuance of the order or scheme from the employment of an old health authority, to the employment of an authority established by or under the Local Government Act 1972 or a London authority, or

(ii) from the employment of a body to which the person in question was transferred by virtue of paragraph (a) of subsection (4) of the preceding section to the employment of a different body which is such a local authority as is mentioned in that paragraph ;

and in this subsection “ old health authority ” and “ new health authority ” have the same meanings as in the preceding section and “ London authority ” means the Greater London Council, a London borough council and the Common Council of the City of London.

20.—(1) It shall be the duty of the Secretary of State to Health appoint, within one month beginning with the date of the Service Staff passing of this Act, two Commissions to be called the National Commissions Health Service Staff Commission and the Welsh National Health Service Staff Commission ; and the Commissions—

- (a) shall consist respectively of such persons as the Secretary of State may from time to time appoint as members

PART II

of the Commission after consulting any bodies appearing to him to represent persons employed in England or, as the case may be, employed in Wales who are liable to transfer in pursuance of section 18 of this Act and any other bodies appearing to him to be concerned with transfers of such persons in pursuance of that section ; and

- (b) shall in the case of the National Health Service Staff Commission exercise its functions in relation to England and in the case of the other Commission exercise its functions in relation to Wales.

(2) It shall be the duty of each Commission—

- (a) to keep under review the arrangements made by relevant bodies for recruiting and engaging employees and the arrangements made for transfers in pursuance of section 18 of this Act and to give advice to the Secretary of State and the relevant bodies with respect to the arrangements ;
- (b) to consider and advise the Secretary of State on any matter which he refers to the Commission as being a matter which in his opinion arises in connection with persons liable to transfer in pursuance of section 18 of this Act ;
- (c) to consider and advise the Secretary of State on the steps required to safeguard the interests of persons liable as aforesaid ; and
- (d) to arrange for the consideration of representations made to the Commission in pursuance of provision made by virtue of paragraph (b) of subsection (4) of the preceding section and for the giving of advice in pursuance of provision so made ;

and each Commission shall have power to take any steps which it considers are appropriate for the purpose of selecting and recommending to Regional or Area Health Authorities and special health authorities persons whom it considers are suitable for employment by any of those authorities.

(3) The Secretary of State may—

- (a) give directions to each Commission with respect to its procedure ;
- (b) give directions to relevant bodies with respect to the furnishing by them of information requested by the appropriate Commission and with respect to the action to be taken by them in consequence of advice given by that Commission ;
- (c) pay to any member of either Commission such remuneration as the Secretary of State may determine with the approval of the Minister for the Civil Service ;

(d) defray any expenses incurred with his approval by either Commission in the performance of its functions; and PART II

(e) wind up either Commission in such manner and at such time as he thinks fit;

and it shall be the duty of a body to which directions are given in pursuance of this subsection to comply with the directions.

(4) In this section "relevant bodies" means bodies from and to whose employment persons are liable to be transferred by virtue of section 18 of this Act.

Hospital endowments etc.

21. A Health Authority shall have power to accept, hold and administer any property on trust for all or any purposes relating to the health service. Power of Health Authorities to accept gifts.

22.—(1) Where the terms of a trust instrument authorise or require the trustees, whether immediately or in the future, to apply any part of the capital or income of the trust property for the purposes of any hospital vested in the Secretary of State, the trust instrument shall be construed as authorising or, as the case may be, requiring the trustees to apply the trust property to the like extent, and at the like times, for the purpose of making payments, whether of capital or income, to the appropriate hospital authority. Private trusts for hospitals: payments to Health Authorities.

(2) Any sum so paid to the appropriate hospital authority shall, so far as practicable, be applied by them for the purpose specified in the trust instrument.

(3) In this section "the appropriate hospital authority" means—

(a) where Special Trustees are appointed for the hospital, those trustees,

(b) in any other case, the Area Health Authority exercising functions on behalf of the Secretary of State in respect of the hospital.

(4) Nothing in this section shall apply—

(a) to a trust for a special hospital; or

(b) to property transferred under section 24 of this Act.

23.—(1) The Hospital Endowments Fund shall be wound up by the Secretary of State, and the winding up shall be completed by 31st March 1974 or as soon after as is practicable. Winding-up of Hospital Endowments Fund.

PART II

(2) The Secretary of State shall by order provide for the distribution of the assets of the Hospital Endowments Fund among the following authorities and bodies, that is—

Regional Health Authorities,
Area Health Authorities, and
Special Trustees,

or among such of those authorities or trustees as are specified in the order, in such proportions or up to such amounts as may be so specified.

Transfer of
trust property
from abolished
authorities.

24.—(1) Subject to the following subsection, property held immediately before the appointed day on trust by a body specified in column 1 of the Table below (excluding a preserved Board) shall on the appointed day be transferred to and vest in the person specified in the relevant entry in column 2 of that Table.

TABLE

1.	2.
<i>Existing trustees</i>	<i>New trustees</i>
A regional hospital board in England.	Such one or more of the Regional Health Authorities as may be specified by an order made by the Secretary of State.
The Welsh Hospital Board ...	Such one or more Area Health Authorities or special health authorities in Wales as may be specified by an order made by the Secretary of State.
A Hospital Management Committee (other than a University Hospital Management Committee) holding any property on trust for one or more hospitals.	The Area Health Authority or Authorities responsible for the administration of the hospitals.
A University Hospital Management Committee.	The Special Trustees appointed for the university hospital.
A Board of Governors	The Special Trustees appointed for the teaching hospital.

(2) If after the passing of this Act and before 31st October 1973 a University Hospital Management Committee or Board of Governors requests the Secretary of State in writing to secure that property held immediately before the appointed day by the Committee or Board is not transferred to and vested in Special Trustees by virtue of the preceding subsection, he may by an order made before the appointed day provide that the property shall be treated for the purposes of that subsection as if it were held immediately before that day by a Hospital Management Committee which is not a University Hospital Management Committee.

(3) Where the Secretary of State has arranged before the appointed day for an Area Health Authority (Teaching) established before that day—

- (a) to become responsible for the administration of a hospital or group of hospitals controlled and managed by a Hospital Management Committee which is not a University Hospital Management Committee ; and
- (b) not to become responsible on that day for the administration of any hospital which immediately before that day was controlled and managed by a University Hospital Management Committee or a Board of Governors,

he may by an order made before that day specify the hospital or group in question and provide that for the purposes of subsection (1) of this section and section 29(1) of this Act the Hospital Management Committee shall be deemed to be a University Hospital Management Committee and the hospital or group shall be deemed to be designated as a university hospital.

25.—(1) Any property held immediately before the appointed day by a local health authority on trust for purposes which are wholly or mainly the same as those of any part of the health service shall on the appointed day be transferred to and vest in such one or more Health Authorities as may be specified by an order made by the Secretary of State.

Transfer of trust property held for health services by local health authorities.

(2) Any property held immediately before the appointed day by the Greater London Council on trust for the purpose of its functions under section 27 of the principal Act (ambulance services) shall on the appointed day be transferred to and vest in such Health Authority as may be specified by an order made by the Secretary of State.

(3) The Secretary of State may by order provide for determining whether immediately before the appointed day any property was held as mentioned in the preceding provisions of this section.

(4) Nothing in section 210 of the Local Government Act 1972 (charities) shall apply to property to be transferred under this section.

26.—(1) The Secretary of State may, having regard to any change or proposed change in the arrangements for the administration of a hospital or in the area or functions of any Health Authority, by order provide for the transfer of any trust property

Power to make further transfers of trust property.

PART II

from any Health Authority or Special Trustees to any other Health Authority or Special Trustees.

(2) If it appears to the Secretary of State at any time that all the functions of any Special Trustees should be discharged by one or more Health Authorities then, whether or not there has been any such change as is mentioned in the preceding subsection, he may by order provide for the transfer of all trust property from the Special Trustees to the Health Authority or, in such proportions as he may specify in the order, to those Health Authorities.

(3) Before acting under this section the Secretary of State shall consult the Health Authorities and Special Trustees concerned.

Application
of trust
property
previously
held for
general
hospital
purposes.

27.—(1) This section applies—

- (a) to property which is transferred under section 23 of this Act; and
- (b) to property which is transferred under section 24 of this Act and which immediately before the appointed day was, in accordance with any provision contained in or made under section 7 of the principal Act, applicable for purposes relating to hospital services or relating to some form of research,

and this section shall continue to apply to the property after any further transfer under the preceding section.

(2) The person holding the property after the transfer or last transfer shall secure, so far as is reasonably practicable, that the objects of any original endowment and the observance of any conditions attached thereto, including in particular conditions intended to preserve the memory of any person or class of persons, are not prejudiced by the provisions of this Part of this Act.

In this subsection “original endowment” means a hospital endowment which was transferred under section 7 of the principal Act and from which the property in question is derived.

(3) Subject to the preceding subsection, the property shall be held on trust for such purposes relating to hospital services (including research), or to any other part of the health service associated with any hospital, as the person holding the property thinks fit.

(4) Where the person holding the property is a body of Special Trustees, the power conferred by the preceding subsection shall be exercised as respects the hospitals for which they are appointed.

28.—(1) Any discretion given by a trust instrument to the trustees of property transferred under section 24, 25 or 26 of this Act shall be exercisable by the person to whom the property is so transferred and, subject to the preceding section and subject to the following provisions of this section, the transfer shall not affect the trusts on which the property is held. **PART II**
Application of trust property: further provisions.

(2) Where property is transferred under section 24 of this Act and any discretion is given by a trust instrument to the trustees to apply the property, or income arising from the property, to such hospital services (including research) as the trustees think fit without any restriction on the kinds of hospital services and without any restriction to one or more specified hospitals, the discretion shall be enlarged so as to allow the application of the property, or as the case may be of the income arising from the property, to such extent as the trustees think fit, for any other part of the health service associated with any hospital.

(3) The preceding subsection shall apply on any subsequent transfer of the property under section 26 of this Act.

29.—(1) The Secretary of State shall appoint bodies of trustees (in this Act referred to as Special Trustees) for the hospital or hospitals which, immediately before the appointed day, were controlled and managed by any University Hospital Management Committee or Board of Governors (excluding any body on whose request an order was made in pursuance of section 24(2) of this Act and any preserved Board), and those trustees shall hold and administer the property transferred to them under this Act. Special Trustees for a university or teaching hospital.

(2) Special Trustees shall have power to accept, hold and administer any property on trust for all or any purposes relating to hospital services (including research), or to any other part of the health service associated with hospitals, being a trust which is wholly or mainly for hospitals for which the Special Trustees are appointed.

(3) The number of trustees for any hospital or hospitals shall be such as the Secretary of State may from time to time determine after consultation with such bodies and persons as he considers appropriate.

(4) The term of office of any Special Trustee shall be fixed by the Secretary of State, but a Special Trustee may be removed by the Secretary of State at any time during his term of office.

30.—(1) Where by section 24, 25 or 26 of this Act, or by an order under any of those sections, property is transferred to two or more authorities, it shall be apportioned by them in such Endowments: supplementary provisions.

PART II

proportions as they may agree or as may in default of agreement be determined by the Secretary of State:

Provided that where the property is transferred pursuant to an order, the order may provide for the way in which the property is to be apportioned.

(2) Where property is so apportioned, the Secretary of State may by order make any consequential amendments of the trust instrument relating to the property.

(3) In sections 21 to 29 of this Act, unless the context otherwise requires—

“Health Authority” means a Regional or Area Health Authority or a special health authority; and

“University Hospital Management Committee” means a Hospital Management Committee of a hospital or group of hospitals designated as a university hospital under section 5(1) of the Health Services and Public Health Act 1968.

1968 c. 46.

(4) Any provision in the said sections for the transfer of any property includes provision for the transfer of any rights and liabilities arising from that property.

1960 c. 58.

(5) Nothing in the said sections shall affect any power of Her Majesty, the court (as defined in the Charities Act 1960) or any other person to alter the trusts of any charity.

PART III

**THE HEALTH SERVICE COMMISSIONERS FOR
ENGLAND AND FOR WALES**

Appointment
and tenure
of office.

31.—(1) For the purpose of conducting investigations in accordance with this Part of this Act, there shall be appointed a Commissioner to be known as the Health Service Commissioner for England and a Commissioner to be known as the Health Service Commissioner for Wales.

(2) Her Majesty may by Letters Patent from time to time appoint a person to be a Commissioner, and a person so appointed shall, subject to the following subsection, hold office during good behaviour.

(3) A person appointed to be a Commissioner may be relieved of office by Her Majesty at his own request or may be removed from office by Her Majesty in consequence of Addresses from both Houses of Parliament, and shall in any case vacate office on completing the year of service in which he attains the age of sixty-five years.

(4) A person who is a member of a relevant body shall not be appointed to be a Commissioner, and a Commissioner shall not become a member of a relevant body.

32.—(1) Subject to subsections (3) and (4) of this section, there shall be paid to the holder of the office of a Commissioner such salary as the House of Commons may by resolution from time to time determine, and any such resolution may take effect from the date on which it is passed or from another date specified in the resolution. PART III
Salaries and pensions.

(2) Subject to subsections (5) and (6) of this section, Schedule 1 to the Parliamentary Commissioner Act 1967 (which relates to pensions and other benefits) shall have effect with respect to persons who have held office as a Commissioner as it has effect with respect to persons who have held office as the Parliamentary Commissioner for Administration. 1967 c. 13.

(3) The salary payable to a holder of the office of a Commissioner shall be abated by the amount of any pension payable to him in respect of any public office in the United Kingdom or elsewhere to which he has previously been appointed or elected; but any such abatement shall be disregarded in computing that salary for the purposes of the said Schedule 1.

(4) A person holding the office of Parliamentary Commissioner for Administration and one or more of the offices of Health Service Commissioner for England, Health Service Commissioner for Scotland and Health Service Commissioner for Wales shall so long as he does so be entitled only to the salary pertaining to the first-mentioned office; and a person holding two or more of those offices other than that of Parliamentary Commissioner for Administration shall so long as he does so be entitled only to the salary pertaining to such one of those offices as he selects.

(5) A person—

(a) shall not be entitled to make simultaneously different elections in pursuance of paragraph 1 of the said Schedule 1 in respect of different offices mentioned in the preceding subsection; and

(b) shall, if he has made or is treated as having made an election in pursuance of that paragraph in respect of such an office, be deemed to have made the same election in respect of all such other offices to which he is or is subsequently appointed;

and no account shall be taken for the purposes of that Schedule of a period of service in such an office if salary in respect of the office was not paid for that period.

(6) Subject to the preceding subsection, the Minister for the Civil Service may by regulations provide that the said Schedule 1 shall have effect, in relation to persons who have held more than one of the offices mentioned in subsection (4) of this section, with such modifications as the said Minister considers

PART III necessary in consequence of their having held more than one of those offices ; and it is hereby declared that different regulations may be made in pursuance of paragraph 4 of that Schedule in relation to different offices so mentioned.

(7) Any salary, pension or other benefit payable by virtue of this section shall be charged on and issued out of the Consolidated Fund.

Administrative provisions.

33.—(1) A Commissioner may appoint such officers as he may determine with the approval of the Minister for the Civil Service as to numbers and conditions of service ; and it shall be the duty of the Health Service Commissioner for Wales to include among his officers such persons having a command of the Welsh language as he considers are needed to enable him to investigate complaints in Welsh.

(2) Any function of a Commissioner under this Part of this Act may be performed by any officer of the Commissioner authorised for that purpose by him or by any officer so authorised of another Commissioner mentioned in subsection (4) of the preceding section.

(3) To assist him in any investigation a Commissioner may obtain advice from any person who in his opinion is qualified to give it and may pay such fees or allowances to any such person as he may determine with the approval of the said Minister.

(4) The expenses of a Commissioner under this Part of this Act, to such amount as may be sanctioned by the said Minister, shall be defrayed out of money provided by Parliament.

Matters subject to investigation.

34.—(1) In this Part of this Act “ relevant body ” means any of the following bodies, namely—

- (a) Regional Hospital Boards ;
- (b) Boards of Governors ;
- (c) Hospital Management Committees ;
- (d) Executive Councils ;
- (e) Regional Health Authorities ;
- (f) Area Health Authorities ;
- (g) any special health authority established on or before the appointed day ;
- (h) any special health authority which is established after that day and is designated by Order in Council as an authority to which this paragraph applies ;
- (i) Family Practitioner Committees ; and
- (j) the Public Health Laboratory Service Board ;

and, except where the context otherwise requires, any reference in this Part of this Act to a relevant body includes a reference to an officer of the body.

PART III

(2) The Health Service Commissioner for England shall not conduct an investigation under this Part of this Act in respect of the Welsh Hospital Board, any Hospital Management Committee responsible for hospitals in Wales, any Executive Council or Area Health Authority of which the area is in Wales, the Family Practitioner Committee established by such an Authority, or a special health authority exercising functions only or mainly in Wales, and the Health Service Commissioner for Wales shall not conduct such an investigation in respect of a relevant body other than one of the bodies aforesaid.

(3) Subject to the provisions of this section, a Commissioner may investigate—

- (a) an alleged failure in a service provided by a relevant body ; or
- (b) an alleged failure of a relevant body to provide a service which it was a function of the body to provide ;
or
- (c) any other action taken by or on behalf of a relevant body,

in a case where a complaint is duly made by or on behalf of any person that he has sustained injustice or hardship in consequence of the failure or in consequence of maladministration connected with the other action.

(4) Except as hereafter provided, a Commissioner shall not conduct an investigation under this Part of this Act in respect of any of the following matters—

- (a) any action in respect of which the person aggrieved has or had a right of appeal, reference or review to or before a tribunal constituted by or under any enactment or by virtue of Her Majesty's prerogative ;
- (b) any action in respect of which the person aggrieved has or had a remedy by way of proceedings in any court of law :

Provided that a Commissioner may conduct an investigation notwithstanding that the person aggrieved has or had such a right or remedy, if satisfied that in the particular circumstances it is not reasonable to expect him to resort or have resorted to it.

(5) Without prejudice to the preceding subsection, a Commissioner shall not conduct an investigation under this Part of this Act in respect of any such action as is described in Schedule 3 to this Act ; and nothing in this section shall be construed as authorising such an investigation in respect of action taken in connection with any general medical services, general dental services, general ophthalmic services or pharmaceutical services by a person providing the services.

(6) Her Majesty may by Order in Council amend the said Schedule 3 so as to exclude from the provisions of that Schedule action described in paragraph 3 or 4 of the Schedule.

PART III

(7) In determining whether to initiate, continue or discontinue an investigation under this Part of this Act, a Commissioner shall, subject to the preceding provisions of this section, act in accordance with his own discretion ; and any question whether a complaint is duly made to a Commissioner under this Part of this Act shall be determined by the Commissioner.

**Provisions
relating to
complaints.**

35.—(1) A complaint under this Part of this Act may be made by any individual, or by any body of persons whether incorporated or not, not being—

- (a) a local authority or other authority or body constituted for purposes of the public service or of local government or for the purposes of carrying on under national ownership any industry or undertaking or part of an industry or undertaking ;
- (b) any other authority or body whose members are appointed by Her Majesty or any Minister of the Crown or government department, or whose revenues consist wholly or mainly of money provided by Parliament.

(2) Where the person by whom a complaint might have been made under the preceding provisions of this Part of this Act has died or is for any reason unable to act for himself, the complaint may be made by his personal representative or by a member of his family or by some body or individual suitable to represent him ; but except as aforesaid and as provided by subsection (5) of this section a complaint shall not be entertained under this Part of this Act unless made by the person aggrieved himself.

(3) A complaint shall not be entertained under this Part of this Act by a Commissioner unless it is made in writing to him by or on behalf of the person aggrieved not later than one year from the day on which the person aggrieved first had notice of the matters alleged in the complaint ; but a Commissioner may conduct an investigation pursuant to a complaint not made within that period if he considers it reasonable to do so.

(4) Before proceeding to investigate a complaint a Commissioner shall satisfy himself that the complaint has been brought by or on behalf of the person aggrieved to the notice of the relevant body in question and that that body has been afforded a reasonable opportunity to investigate and reply to the complaint ; but a Commissioner shall disregard the preceding provisions of this subsection in relation to a complaint made by an officer of the relevant body in question on behalf of the person aggrieved if the officer is authorised by virtue of subsection (2) of this section to make the complaint and the Commissioner is satisfied that in the particular circumstances those provisions ought to be disregarded.

(5) Notwithstanding anything in the preceding provision of this section, a relevant body—

(a) may itself (excluding its officers) refer to a Commissioner a complaint that a person has, in consequence of a failure or maladministration for which the body is responsible, sustained such injustice or hardship as is mentioned in section 34(3) of this Act if the complaint—

(i) is made in writing to the relevant body by that person or by a person authorised by virtue of subsection (2) of this section to make the complaint to the Commissioner on his behalf, and

(ii) is so made not later than one year from the day mentioned in subsection (3) of this section or within such other period as the Commissioner considers appropriate in any particular case ; but

(b) shall not be entitled to refer a complaint in pursuance of the preceding paragraph after the expiration of three months beginning with the day on which the body received the complaint ;

and a complaint referred to a Commissioner in pursuance of this subsection shall, subject to section 34(7) of this Act, be deemed to be duly made to him under this Part of this Act.

36. The following provisions of the Parliamentary Commissioner Act 1967 shall, with any necessary modifications, apply to the Commissioners, their officers and a relevant body as they apply to the Parliamentary Commissioner for Administration, his officers and a department concerned, namely—

- (a) section 7 (procedure in respect of investigations) ;
- (b) section 8 (evidence) ;
- (c) section 9 (obstruction and contempt) ;
- (d) section 11 (secrecy of information), except subsection (4) ;

Application of certain provisions of Parliamentary Commissioner Act 1967. 1967 c. 13.

but in sections 7(1) and 8(1) of that Act as applied by this section the words “ the principal officer of ” and “ Minister ” shall be omitted.

37.—(1) In any case where a Commissioner conducts an investigation under this Part of this Act, he shall send a report of the results of his investigation—

- (a) to the person who made the complaint ;
- (b) to the relevant body in question ;
- (c) to any person who is alleged in the complaint to have taken or authorised the action complained of ;

Reports by Commissioners.

PART III

- (d) if the relevant body in question is not an Area Health Authority for an area in England, a Hospital Management Committee or a Family Practitioner Committee, to the Secretary of State ;
- (e) if that body is an Area Health Authority for an area in England, to the Regional Health Authority of which the region includes that area ;
- (f) if that body is a Hospital Management Committee, to the Regional Hospital Board by which the Committee was appointed ; and
- (g) if that body is a Family Practitioner Committee, to the Area Health Authority by which the Committee was established.

(2) In any case where a Commissioner decides not to conduct an investigation under this Part of this Act, he shall send a statement of his reasons for doing so to the person who made the complaint and to the relevant body in question.

(3) If, after conducting an investigation under this Part of this Act, it appears to a Commissioner that the person aggrieved has sustained such injustice or hardship as is mentioned in section 34(3) of this Act and that the injustice or hardship has not been and will not be remedied, he may if he thinks fit make a special report to the Secretary of State who shall, as soon as is reasonably practicable, lay a copy of the report before each House of Parliament.

(4) Each of the Commissioners shall annually make to the Secretary of State a report on the performance of his functions under this Part of this Act and may from time to time make to the Secretary of State such other reports with respect to those functions as the Commissioner thinks fit, and the Secretary of State shall lay a copy of every such report before each House of Parliament.

(5) For the purposes of the law of defamation, the publication of any matter by a Commissioner in sending or making a report in pursuance of subsection (1), (3) or (4) of this section or in sending a statement in pursuance of subsection (2) of this section shall be absolutely privileged.

Transitional provisions.

38. Regulations may provide that, where a relevant body is abolished in pursuance of this Act, any prescribed provisions of this Part of this Act and Schedule 3 to this Act shall apply, with or without prescribed modifications, in relation to a complaint in respect of the body which was duly made to a Commissioner under this Part of this Act before the date of the abolition or is made in accordance with the regulations within the period of one year beginning with that date.

- 39.—**(1) In this Part of this Act and Schedule 3 to this Act— PART III
 “action” includes failure to act, and other expressions Interpretation
 connoting action shall be construed accordingly; of Part III.
 “a Commissioner” means the Health Service Commissioner
 for England or the Health Service Commissioner for
 Wales and “the Commissioners” means both those
 persons;
 “person aggrieved” means the person who claims or is
 alleged to have sustained such injustice or hardship
 as is mentioned in section 34(3) of this Act; and
 “relevant body” has the meaning assigned to it by section
 34(1) of this Act.

(2) It is hereby declared that nothing in this Part of this Act authorises or requires a Commissioner to question the merits of a decision taken without maladministration by a relevant body in the exercise of a discretion vested in that body.

PART IV

MISCELLANEOUS AND GENERAL

Miscellaneous

40.—(1) The duty imposed on the Secretary of State by Special
 section 1 of the principal Act to provide services for the hospitals.
 purposes of the health service shall include a duty to provide
 and maintain establishments (in this Act referred to as “special
 hospitals”) for persons subject to detention under the Mental 1959 c. 72.
 Health Act 1959 who in his opinion require treatment under
 conditions of special security on account of their dangerous,
 violent or criminal propensities.

(2) Any institution provided under section 97 of the Mental Health Act 1959 or deemed to be so provided when that section came into force shall be deemed to be provided in pursuance of the preceding subsection.

41.—(1) There are hereby transferred to the Secretary of Nursing
 State the functions which, immediately before this subsection homes and
 comes into force, were exercisable by local authorities by virtue mental
 of any provision of the following enactments (which relate to nursing
 the supervision of nursing homes and mental nursing homes), homes.
 namely, sections 187 and 188 of the Act of 1936 (and section
 298 of that Act so far as it relates to those sections) and
 sections 14 to 18 of the Act of 1959 (and section 23 of that
 Act so far as it relates to those sections); and any reference
 in any of the said sections to a local authority shall be construed
 accordingly.

PART IV**(2) The Secretary of State may make regulations—**

- (a) with respect to the registration of persons under Part VI of the Act of 1936 in respect of nursing homes and mental nursing homes (and in particular, without prejudice to the generality of the preceding provisions of this paragraph, with respect to the making of applications for registration, the refusal and cancellation of registration and appeals to magistrates' courts against refusals and cancellations of registration);
- (b) with respect to the keeping of records relating to nursing homes and mental nursing homes and with respect to the notification of events occurring in such homes;
- (c) with respect to entry into and the inspection of premises used or reasonably believed to be used as a nursing home;
- (d) containing such provisions (including provisions for the transfer of staff and provisions applying with prescribed modifications any provision made by virtue of section 19(2) of this Act) as the Secretary of State considers appropriate for the purpose of securing continuity between the system of supervising nursing homes and mental nursing homes which was in operation before the coming into force of the preceding subsection and the system of supervising such homes thereafter;
- (e) providing that a contravention or failure to comply with any specified provisions of the regulations shall be an offence against the regulations.

1963 c. 13.

(3) Subsections (2) and (3) of section 1 of the Nursing Homes Act 1963 (which provide for an offence against regulations under that section to be punishable on summary conviction with a fine not exceeding £20, for cancellation of a person's registration in respect of a nursing home if he has been convicted of such an offence and for making officers of a body corporate which is guilty of such an offence also guilty of the offence) shall apply to an offence against regulations made by virtue of the preceding subsection as they apply to an offence against regulations under that section; and the said subsection (3) shall apply to an offence under section 187 of the Act of 1936 as it applies to an offence against regulations under the said section 1.

(4) In this section—

1936 c. 49.

"the Act of 1936" means the Public Health Act 1936;

1959 c. 72.

"the Act of 1959" means the Mental Health Act 1959;

"local authority" means the council of a county, county borough, county district or London borough, the

PART IV

Common Council of the City of London, the Sub-Treasurer of the Inner Temple and the Under Treasurer of the Middle Temple;

“mental nursing home” has the same meaning as in Part III of the Act of 1959; and

“nursing home” has the same meaning as in the Act of 1936.

(5) Sections 189 to 191, 194 and 195 of the Act of 1936 (which contain provisions which are superseded by subsections (2) and (3) of this section) shall cease to have effect.

42. For subsection (1) of section 38 of the principal Act (which relates to arrangements for pharmaceutical services) there shall be substituted the following subsection—

Pharmaceutical services.

(1) It shall be the duty of every Area Health Authority to make in accordance with regulations arrangements as respects its area for the supply to persons who are in that area of—

(a) proper and sufficient drugs and medicines and listed appliances which are ordered for those persons by a medical practitioner in pursuance of his functions in the health service, the Scottish health service, the Northern Ireland health service or the armed forces of the Crown (excluding forces of a Commonwealth country and forces raised in a colony); and

(b) listed drugs and medicines which are ordered for those persons by a dental practitioner in pursuance of such functions;

and the services provided in accordance with the arrangements are in this Act referred to as “pharmaceutical services”.

In this subsection—

“the health service” means the service established by section 1 of this Act;

“listed” means included in a list for the time being approved by the Secretary of State for the purposes of this subsection; and

“the Scottish health service” and “the Northern Ireland health service” mean respectively the health service established in pursuance of section 1 of the National Health Service (Scotland) Act 1947 or any service provided in pursuance of Article 4(a) of the Health and Personal Social Services (Northern Ireland) Order 1972.

PART IV

and in subsection (2) of the said section 38 for the words from "receiving general medical services" to "dental practitioner rendering those services" there shall be substituted the words "for whom they are ordered as mentioned in the last foregoing subsection to receive the drugs, medicines and appliances there mentioned".

**Miscellaneous
functions of
Secretary of
State.**

43.—(1) If the Secretary of State considers that any accommodation provided by him by virtue of the Health Service Acts is suitable for use in connection with the provision of general medical services, general dental services, general ophthalmic services or pharmaceutical services he may make the accommodation available on such terms as he thinks fit to persons providing any of those services.

(2) The Secretary of State may permit any person who is a medical or dental practitioner, a registered pharmacist, an ophthalmic or dispensing optician or a person of any other description determined by him and who provides services under the Health Service Acts to use for the purpose of private practice, on such terms as the Secretary of State may determine, facilities available at accommodation provided by the Secretary of State by virtue of the Health Service Acts.

(3) Where the Secretary of State makes arrangements with medical practitioners for the vaccination or immunisation of persons against disease, he shall so far as reasonably practicable give every medical practitioner providing general medical services an opportunity to participate in the arrangements.

(4) It shall be the duty of the Secretary of State to make available, in premises provided by him by virtue of the Health Service Acts, such facilities as he considers are reasonably required, by any university which has a medical or dental school, in connection with clinical teaching and with research connected with clinical medicine or, as the case may be, clinical dentistry.

(5) Nothing in this section shall be construed as prejudicing any powers exercisable by the Secretary of State apart from this section.

**Provision
for early
retirement
in lieu of
compensation
for loss of
office.**

44.—(1) In order to facilitate the early retirement of certain persons who might otherwise suffer, in consequence of this Act, loss of employment or loss or diminution of emoluments, any person who—

- (a) is in any such employment as may be prescribed for the purposes of this subsection; and
- (b) attains or has attained the age of fifty on or before a prescribed date; and

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(c) fulfils such other conditions as may be prescribed ;
may by notice given before a prescribed date and in the prescribed manner elect that this section shall apply to him.

(2) Where any person has made an election under the preceding subsection, then, unless within a prescribed period notice of objection to the election is given to him by a prescribed person, this section shall apply to him on his retirement within a prescribed period and before attaining the normal retiring age and compensation on his retirement shall not be payable to or in respect of him in pursuance of section 24 of the Superannuation Act 1972 (which among other things relates to compensation for loss of office). 1972 c. 11.

(3) Subject to the following subsection, the Secretary of State shall by regulations provide for the payment by him to or in respect of a person to whom this section applies of benefits corresponding, as near as may be, to those which would have been paid to or in respect of that person under the relevant superannuation scheme if—

- (a) at the date of his retirement he had attained the normal retiring age ; and
- (b) the actual period of his reckonable service were increased by such period as may be prescribed, not exceeding the period beginning on the date of his retirement and ending on the date on which he would attain the normal retiring age.

(4) Regulations in pursuance of the preceding subsection shall be so framed as to secure that the sums which would otherwise be payable under the regulations in accordance with that subsection to or in respect of any person are reduced to take account of any benefits payable to or in respect of him under the relevant superannuation scheme.

(5) Any sums payable under regulations made in pursuance of subsection (3) of this section shall be treated for the purposes of section 73 of the Finance Act 1972 (under which compensation for loss of office or employment is chargeable to tax as a payment made on retirement or removal from office or employment) in like manner as compensation paid in pursuance of the said section 24. 1972 c. 41.

(6) In this section—
“ normal retiring age ” means—

- (a) in relation to any person to whom an age of compulsory retirement applies by virtue of the relevant superannuation scheme, that age ; and
- (b) in relation to any other person, the age of sixty-five in the case of a man and sixty in the case of

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a woman or, in either case, such other age as may be prescribed ;

“reckonable service”, in relation to any person, means service in respect of which benefits are payable under the relevant superannuation scheme ; and

“relevant superannuation scheme”, in relation to any person, means the instrument which is applicable in the case of his employment and which makes provision with respect to the pensions, allowances or gratuities which, subject to the fulfilment of certain requirements and conditions, are to be, or may be, paid to or in respect of persons in that employment.

Overseas aid. 45. Each Regional and Area Health Authority, each special health authority and the Public Health Laboratory Service Board shall have power—

(a) with the consent of the Secretary of State, to enter into and carry out agreements with the relevant Minister under which, at the expense of that Minister, the authority or board acts as the instrument by means of which he furnishes technical assistance in the exercise of the power conferred on him by section 1(1) of the Overseas Aid Act 1966 ;

1966 c. 21.

(b) with the consent of the Secretary of State and the relevant Minister, to enter into and carry out agreements under which the authority or board furnishes, for any purpose specified in the said section 1(1), technical assistance (excluding financial assistance) in any country or territory outside the United Kingdom against reimbursement to the authority or board of the cost of furnishing the assistance ;

and in this section “the relevant Minister” means the Minister of the Crown by whom is exercisable the power conferred on the Minister for Overseas Development by the said section 1(1) as originally enacted.

Notices of
births and
deaths.

46.—(1) It shall be the duty of each registrar of births and deaths to furnish, to the prescribed medical officer of the Area Health Authority of which the area includes the whole or part of the sub-district of the registrar, such particulars of each birth and death which occurred in the area of the Authority as are entered after this subsection comes into force in a register of births or deaths kept for that sub-district ; and regulations may make provision as to the manner in which and the times at which particulars are to be furnished in pursuance of this subsection.

(2) In section 203 of the Public Health Act 1936 (which among other things provides for the notification of births to medical officers of health of welfare authorities), in subsections (1) and (2) for references to the medical officer of health of the welfare authority there shall be substituted references to the prescribed medical officer of the Area Health Authority, and in subsection (2) for the reference to a welfare authority there shall be substituted a reference to an Area Health Authority and references to a residence shall be omitted.

PART IV
1936 c. 49.

Financial provisions

47.—(1) It shall be the duty of the Secretary of State to pay—

Expenses of
new health
authorities.

- (a) to each Area Health Authority in Wales and each Regional Health Authority the sums needed to defray such expenditure of the Authority as the Secretary of State approves in the prescribed manner ;
- (b) to each Family Practitioner Committee sums equal to the expenses which the Secretary of State determines are incurred by the Committee for the purpose of performing the functions conferred on the Committee by virtue of this Act ; and
- (c) to each special health authority sums equal to such of the expenses of the authority as are not defrayed by payments made to the authority in pursuance of subsection (3) of this section.

(2) It shall be the duty of each Regional Health Authority to pay to each Area Health Authority of which the area is included in the region of the Regional Health Authority the sums needed to defray such expenses of the Area Health Authority as the Regional Health Authority approves in the prescribed manner.

(3) Where an order establishing a special health authority provides for any expenses of the authority to be defrayed by a Regional or Area Health Authority or by two or more such Authorities in portions determined by or in accordance with the order, it shall be the duty of each Authority in question to pay to the special health authority sums equal to, or to the appropriate portion of, those expenses.

(4) Sums falling to be paid in pursuance of the preceding provisions of this section shall be payable subject to compliance with such conditions as to records, certificates or otherwise as the Secretary of State may determine.

PART IV
Expenses and
receipts of
Secretary of
State etc.

48. There shall be paid out of money provided by Parliament—

- (a) any expenses incurred by the Secretary of State for the purposes of this Act ; and
- (b) any increase attributable to the provisions of this Act in the sums payable under any other Act out of money so provided ;

and any sums received by the Secretary of State by virtue of this Act shall be paid into the Consolidated Fund.

Stamp duty.
1895 c. 16.

49. Nothing in section 12 of the Finance Act 1895 (which requires certain Acts and certain instruments relating to the vesting of property by virtue of an Act to be stamped as conveyances on sale) shall apply to this Act or an order made in pursuance of this Act ; and stamp duty shall not be payable on such an order.

Remission of
charges, and
consequential
adaptation of
1966 c. 20 s. 6,
1951 c. 31.
1952 c. 25.

50.—(1) Regulations may provide for the remission or repayment of any charges which, in pursuance of section 1 of the National Health Service Act 1951 or section 2 of the National Health Service Act 1952, are payable apart from this section, by a person whose income as calculated in accordance with regulations is at less than the prescribed rate, in respect of the supply or replacement of dental or optical appliances or in respect of services provided as part of the general dental services ; and accordingly in section 6 of the Ministry of Social Security Act 1966 (which specifies the medical, dental and similar requirements which are and are not to be taken into account for the purposes of that Act) the words from “include any requirement” to “but” and the word “other” shall be omitted.

1966 c. 20.

(2) In the application of the preceding subsection to Scotland the reference to general dental services shall be construed as a reference to general dental services provided under Part IV of the National Health Service (Scotland) Act 1947.

1947 c. 27.

Compensation
for loss of
rights to sell
medical
practices.

51. In section 36(3)(c) of the principal Act and 37(3)(c) of the National Health Service (Scotland) Act 1947 (under which regulations must secure that, except in prescribed circumstances, compensation for loss of the right to sell a medical practice is not paid until the retirement or death of the medical practitioner concerned, whichever first occurs), the words from “and secure” to “occurs” shall be omitted.

52.—(1) If the Secretary of State considers it appropriate for remuneration in respect of services provided by any person in pursuance of Part IV of the principal Act to be paid by a particular body and apart from this subsection the functions of the body do not include the function of paying the remuneration, the Secretary of State may by order confer that function on the body; and any sums required to enable any body having that function to pay remuneration in respect of such services shall, if apart from this subsection there is no provision authorising the payment of the sums by the Secretary of State or out of money provided by Parliament, be paid by him.

PART IV
Miscellaneous
financial
provisions.

(2) In deciding whether to make an order under subsection (1) of section 3 of the Local Government Act 1966 (which relates to the variation of rate support grant orders) in respect of the year beginning with 1st April 1974 or 1st April 1975 and what order to make under that subsection in respect of either year, the Secretary of State shall have regard to any relief in respect of the year in question which he considers has been or is likely to be obtained by local authorities in consequence of this Act and was not taken into account in making the relevant rate support grant order.

1966 c. 42.

Supplemental

53.—(1) In section 58(1) of the principal Act (which enables the Secretary of State to acquire by agreement or compulsorily any land required by him for the purposes of that Act), for the words “this Act” there shall be substituted the words “the National Health Service Acts 1946 to 1973” and for the words “at any hospital vested in the Minister” there shall be substituted the words “for any purposes of those Acts”; and the Secretary of State may acquire any property, other than land, required by him for the purposes of the Health Service Acts.

Acquisition
and use of
land and
other
property

(2) Section 128 of the Town and Country Planning Act 1971 (which among other things provides that where a Minister acquires consecrated land or land comprised in a burial ground compulsorily he may, subject to the safeguards provided by that section, use the land for the purpose for which he acquired it notwithstanding any obligation or restriction imposed by ecclesiastical law or anything in any enactment relating to burial grounds) shall apply to consecrated land and land comprised in a burial ground within the meaning of that section which is held by the Secretary of State for any of the purposes of the health service and has not been acquired by him as mentioned in subsection (1) of that section as if the land had been so acquired for those purposes.

1971 c. 78.

(3) The Secretary of State may use, for the purposes of any of the functions conferred on him by the Health Service Acts,

PART IV

any property belonging to him by virtue of any of those Acts ; and it is hereby declared that the Secretary of State has power to maintain all such property.

**General
ancillary
provisions.**

54.—(1) If the Secretary of State considers that by reason of an emergency it is necessary, in order to ensure that a service falling to be provided in pursuance of the Health Service Acts is provided, to direct that during a period specified in the directions a function conferred on any body or person by virtue of those Acts shall to the exclusion of or concurrently with that body or person be performed by another body or person, he may give directions accordingly and it shall be the duty of the bodies or persons in question to comply with the directions ; and the powers conferred on the Secretary of State by this subsection are in addition to any other powers exercisable by him.

(2) The Secretary of State may by order make such incidental, supplemental, transitional or consequential provision (including provision making modifications of enactments) as he considers appropriate for any of the purposes of this Act or in consequence of or for giving full effect to any provision of this Act ; and nothing in the following subsection or any other provision of this Act shall be construed as prejudicing the generality of the power conferred by this subsection.

(3) An order made by virtue of the preceding subsection may include provision—

(a) for any thing duly done by a body in the exercise of functions which by virtue of this Act become functions of another body to be deemed to have been duly done by the other body ; and

(b) without prejudice to the generality of the preceding paragraph, for any instrument, in so far as it was made in the exercise of such functions, to continue in force until varied or revoked by the other body.

(4) In so far as—

(a) any apportionment, agreement, order or regulation made by virtue of an enactment repealed by this Act ; or

(b) any approval, consent, direction or notice given by virtue of such an enactment ; or

(c) any proceedings begun or thing done by virtue of such an enactment,

could, if a corresponding enactment which is contained in this Act had been in force at the relevant time, have been made, given, begun or done by virtue of the corresponding enactment,

PART IV

it shall, if effective immediately before the relevant corresponding enactment comes into force, continue to have effect thereafter as if made, given, begun or done by virtue of that corresponding enactment.

(5) The Secretary of State may by order provide that any right which a Regional Hospital Board, a Board of Governors or a Hospital Management Committee was entitled to enforce by virtue of section 13 of the principal Act immediately before the appointed day and any liability in respect of which such a board or committee was liable by virtue of that section immediately before that day shall, on and after that day, be enforceable by or as the case may be against a Regional Health Authority, Area Health Authority or special health authority specified in the order as if the authority so specified were concerned as a principal with the matter in question and did not exercise functions on behalf of the Secretary of State.

55.—(1) Except where the contrary intention appears, in Interpretation this Act the following expressions have the following meanings— etc.

- “the appointed day” means such day as the Secretary of State may by order appoint;
- “Board of Governors” means a body constituted in pursuance of section 11 of the principal Act as the Board of Governors of a teaching hospital;
- “functions” includes powers and duties;
- “the health service” means the health service established in pursuance of section 1 of the principal Act;
- “the Health Service Acts” means the National Health Service Acts 1946 to 1968 and this Act;
- “local health authority” includes a joint board constituted in pursuance of section 19 of the principal Act and a body exercising delegated functions of such an authority in pursuance of section 46 of the Local Government Act 1958;
- “modifications” includes additions, omissions and amendments;
- “prescribed” means prescribed by regulations;
- “preserved Board” has the meaning assigned to it by section 15(6) of this Act;
- “the principal Act” means the National Health Service Act 1946 c. 81.
- “regulations” means, subject to subsection (2) of the following section, regulations made by the Secretary of State;
- “special hospital” has the meaning assigned to it by section 40(1) of this Act; and

PART IV

"Special Trustees" has the meaning assigned to it by section 29(1) of this Act;

and any other expression to which a meaning is assigned by Part IV or section 79(1) of the principal Act has that meaning in this Act.

1972 c. 70.

(2) Section 269 of the Local Government Act 1972 (which relates to the meaning of "England" and "Wales" in Acts passed after 1st April 1974) shall apply to this Act as if this Act had been passed after that date; and it is hereby declared that in this Act "property" includes land.

(3) Any reference in this Act to any enactment is a reference to it as amended or applied by or under any other enactment including this Act.

Orders and
regulations
etc.

56.—(1) Any power to make orders or regulations conferred by this Act shall be exercisable by statutory instrument; and

(a) a statutory instrument made by virtue of this subsection, except an instrument containing only such orders as are mentioned in the following paragraph, or by virtue of section 34 (1)(h) or (6) of this Act or subsection (6) of the following section shall be subject to annulment in pursuance of a resolution of either House of Parliament;

(b) a statutory instrument containing only orders made by virtue of section 14(2), 24(2) or (3) or 54 of this Act or orders appointing a day in pursuance of this Act shall be laid before Parliament after being made.

(2) Any power to make regulations conferred on the Secretary of State by this Act shall, if the Treasury so directs, be exercisable by the Treasury and the Secretary of State acting jointly.

(3) Any power to make an order conferred by this Act, except sections 15(2)(d), 23(2) and 24(2) and (3), includes power to vary or revoke the order by a subsequent order made in the exercise of that power; but provisions of an order which appoint a day or provide for an enactment to come into force on a specified day shall not by virtue of this subsection be revoked or varied on or after that day.

1963 c. 13.

(4) Any power conferred by the Health Service Acts or the Nursing Homes Act 1963 to make orders, regulations or schemes, and any power conferred by section 7 of this Act to give directions by an instrument in writing, may unless the contrary intention appears be exercised—

(a) either in relation to all cases to which the power extends, or in relation to all those cases subject to specified

exceptions, or in relation to any specified cases or classes of case ; and

(b) so as to make, as respects the cases in relation to which it is exercised,—

(i) the full provision to which the power extends or any less provision (whether by way of exception or otherwise) ;

(ii) the same provision for all cases in relation to which the power is exercised, or different provision for different cases or different classes of case, or different provision as respects the same case or class of case for different purposes of those Acts or that section ;

(iii) any such provision either unconditionally or subject to any specified condition,

and includes power to make such incidental or supplemental provision in the orders, regulations, schemes or directions as the persons making or giving them consider appropriate.

(5) Any directions given in pursuance of any provision of this Act other than section 7 may be varied or revoked by subsequent directions given in pursuance of that provision.

57.—(1) The enactments mentioned in Schedule 4 to this Act shall have effect subject to the amendments specified in that Schedule.

Minor and consequential amendments, and repeals.

(2) The enactments and Order in Council mentioned in the first and second columns of Schedule 5 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) An order bringing any provision of the said Schedule 4 or Schedule 5 into force in pursuance of subsection (3) of the following section may, without prejudice to the generality of that subsection or subsection (4) of the preceding section, provide that the enactment or Order in Council amended or repealed by that provision shall, in such cases and for such periods as are specified in the order, continue to have effect as if the provision were not in force.

(4) An order bringing any provision of the said Schedule 5 into force as mentioned in the preceding subsection may, without prejudice as therein mentioned, provide that any orders, regulations or other instruments in force by virtue of that provision shall continue in force ; and an instrument continued in force in pursuance of this subsection may be varied or revoked by regulations.

(5) The Secretary of State may by order repeal or amend any provision of any local Act passed before this Act (including

PART IV an Act confirming a provisional order) or of any order or other instrument made under an Act so passed if it appears to him that the provision is inconsistent with, or has become unnecessary or requires alteration in consequence of, any provision of this Act or corresponds to any provision repealed by this Act.

(6) Her Majesty may by Order in Council make such modifications of the Health Service Acts as She considers appropriate in connection with the consolidation of those Acts.

Citation,
commence-
ment and
extent.

58.—(1) This Act may be cited as the National Health Service Reorganisation Act 1973, and—

(a) this Act and the National Health Service Acts 1946 to 1968 may be cited together as the National Health Service Acts 1946 to 1973 ; and

(b) this Act so far as it extends to Scotland and the National Health Service (Scotland) Acts 1947 to 1972 may be cited together as the National Health Service (Scotland) Acts 1947 to 1973.

(2) The following provisions of this Act shall come into force on the passing of this Act, namely sections 1, 5 to 10, 14 to 21, 23 to 26, 29, 30, 41 (so far as it is applied by sections 16 and 18), 44, 47 to 49, 51 to 57 and this section, Schedules 1 and 2, paragraphs 22, 79, 133, 141, 151 and 152 of Schedule 4 and the entry in Schedule 5 relating to section 36(3)(c) of the principal Act.

(3) The provisions of this Act which do not come into force in pursuance of the preceeding subsection shall come into force on such day as the Secretary of State may by order appoint ; and, without prejudice to the generality of section 56(4) of this Act, different days may be appointed in pursuance of this subsection for different provisions of this Act and for different purposes of the same provision of this Act.

(4) The Secretary of State may by order provide that this Act shall extend to the Isles of Scilly with such modifications, if any, as are specified in the order ; and except as provided in pursuance of this subsection this Act shall not extend to the Isles of Scilly.

(5) The following provisions only of this Act shall extend to Scotland, namely, this subsection and subsections (1) to (3) of this section, sections 32(4) to (7), 36, 37(5), section 39(1) so far as it relates to those sections, sections 50, 51 and 57, paragraphs 41, 42, 43, 49, 58(2), 59(1), 67, 77 to 82, 96, 102, 104, 106, 109, 123,

128, 130, 133 to 135 and 138 to 150 of Schedule 4, the entries in Schedule 5 relating to the National Health Service (Scotland) Act 1947, the Dentists Act 1957, the Opticians Act 1958, the Radioactive Substances Act 1960, the Health Visiting and Social Working Training Act 1962, the Redundancy Payments Act 1965, (excluding the reference to paragraph 6), the Ministry of Social Security Act 1966 and the National Health Service (Scotland) Act 1972, and section 56 so far as it relates to subsection (3) of this section, sections 32(6) and 50 and paragraphs 138 and 139 of Schedule 4. PART IV
1947 c. 27.
1957 c. 28.
1958 c. 32.
1960 c. 34.
1962 c. 33.
1965 c. 62.
1966 c. 20.
1972 c. 58.

(6) The following provisions only of this Act shall extend to Northern Ireland, namely, this subsection and subsections (1) to (3) of this section, sections 36 and 37(5), section 39(1) so far as it relates to those sections, section 57, paragraphs 40, 69, 79 to 82, 96, 102, 104, 109, 128, 130, 134, 146 and 148 of Schedule 4 and the entries in Schedule 5 relating to the Polish Resettlement Act 1947, the Dentists Act 1957, the Opticians Act 1958, the Radioactive Substances Act 1960, the Health Visiting and Social Work (Training) Act 1962 and the Order in Council of 1972. 1947 c. 19.
1957 c. 28.
1958 c. 32.
1960 c. 34.
1962 c. 33.

SCHEDULES

Sections 5, 6.

SCHEDULE 1

ADDITIONAL PROVISIONS RELATING TO NEW AUTHORITIES

PART I

MEMBERSHIP OF REGIONAL AND AREA HEALTH AUTHORITIES

Regional Health Authorities

1.—(1) A Regional Health Authority shall consist of a chairman appointed by the Secretary of State and of such number of other members appointed by him as he thinks fit.

(2) Except in prescribed cases it shall be the duty of the Secretary of State, before he appoints a member of a Regional Health Authority other than the chairman, to consult with respect to the appointment—

- (a) subject to sub-paragraph (3) of this paragraph, such of the following bodies of which the areas or parts of them are within the region of the Authority, namely, county councils, metropolitan district councils, the Greater London Council, London borough councils and the Common Council of the City of London ;
- (b) the university or universities with which the provision of health services in that region is or is to be associated ;
- (c) such bodies as the Secretary of State may recognise as being, either in that region or generally, representative respectively of medical practitioners, dental practitioners, nurses, midwives, registered pharmacists and ophthalmic and dispensing opticians or representative of such other professions as appear to him to be concerned ;
- (d) any federation of workers' organisations which appears to the Secretary of State to be concerned and any voluntary organisation within the meaning of section 13 of this Act and any other body which appear to him to be concerned ; and
- (e) in the case of an appointment of a member falling to be made after the establishment of the Regional Health Authority, that Authority.

(3) In relation to an appointment of a member falling to be made before the appointed day, the preceding sub-paragraph shall have effect as if for paragraph (a) there were substituted the following paragraph—

- (a) such of the following bodies providing services in the region of the Authority as the Secretary of State thinks fit, namely, Regional Hospital Boards, Boards of Governors, Executive Councils, the Greater London Council and local health authorities.

Area Health Authorities

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2.—(1) Subject to paragraph 4 below, an Area Health Authority for an area in England shall consist of the following members—

- (a) a chairman appointed by the Secretary of State ;
- (b) the specified number of members appointed by the relevant Regional Authority after consultation, except in prescribed cases, with the bodies mentioned in sub-paragraph (2) of this paragraph ;
- (c) the specified number of members appointed by the relevant Regional Authority on the nomination of the university or universities specified as being associated with the provision of health services in that Authority's region ; and
- (d) the specified number (not less than four) of members appointed by the specified local authority or local authorities.

(2) The bodies referred to in paragraph (b) of the preceding sub-paragraph are—

- (a) such bodies as the relevant Regional Authority may recognise as being, either in its region or in the area of the Area Health Authority or generally, representative respectively of medical practitioners, dental practitioners, nurses, midwives, registered pharmacists and ophthalmic and dispensing opticians or representative of such other professions as appear to the relevant Regional Authority to be concerned ;
- (b) such other bodies (including any federation of workers' organisations) as appear to the relevant Regional Authority to be concerned, excluding any university which has nominated or is entitled to nominate a member and any local authority which has appointed or is entitled to appoint a member ;
- (c) in relation to an appointment of a member falling to be made before the appointed day, such of the Regional Hospital Boards, Hospital Management Committees, Boards of Governors and Executive Councils providing services within the area of the Area Health Authority in question as the relevant Regional Authority thinks fit ; and
- (d) in relation to an appointment of a member falling to be made after the establishment of the Area Health Authority in question, that Authority.

3. The preceding paragraph shall apply to an Area Health Authority for an area in Wales as if for any reference to the relevant Regional Authority there were substituted a reference to the Secretary of State and for any reference to England or the region of that Authority there were substituted a reference to Wales.

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4. The members of an Area Health Authority (Teaching) shall, in addition to the members appointed in pursuance of paragraph 2 above, include the specified number of members appointed—

(a) in the case of members falling to be appointed before the appointed day, by the Secretary of State from among the members of and after consultation with such as he thinks fit of—

(i) the Boards of Governors and Hospital Management Committees of teaching hospitals and university hospitals situated wholly or partly within the area of the Authority in question, or

(ii) if there is no such Board or Committee, the Hospital Management Committees managing hospitals or groups of hospitals situated wholly or partly within that area ;

(b) in the case of members falling to be appointed on or after the appointed day to an Area Health Authority (Teaching) of which the area is in England by the relevant Regional Authority from among persons appearing to that Authority to have knowledge of and experience in the administration of a hospital providing substantial facilities for undergraduate or post-graduate clinical teaching ;

(c) in the case of members falling to be appointed on or after the appointed day to an Area Health Authority (Teaching) of which the area is in Wales, by the Secretary of State from among persons appearing to him to have such knowledge and experience ;

and in this paragraph "university hospital" means a hospital or group of hospitals designated as a university hospital in pursuance of section 5 of the Health Services and Public Health Act 1968.

1968 c. 46.

Supplemental

5.—(1) References in the preceding provisions of this Schedule to the region or area of an Authority shall, in a case where the Authority has not been established or a region or area for it has not been determined, be construed as a reference to the locality which the Secretary of State considers is to be the region or area of the Authority.

(2) For the purposes of paragraphs 2 to 4 above—

"local authority" means the council of a non-metropolitan county, a metropolitan district and a London borough, the Inner London Education Authority and the Common Council of the City of London ;

"the relevant Regional Authority" means the Regional Health Authority of which the region includes the area of the Area Health Authority in question ; and

"specified" means specified in the order establishing the Area Health Authority in question or, where another order provides for it to be called an Area Health Authority or an Area Health Authority (Teaching), in that other order.

(3) Where an order establishing an Area Health Authority or another order providing for it to be called an Area Health Authority

SCH. 1

or an Area Health Authority (Teaching) specifies more than one university in pursuance of paragraph 2(1)(c) above, the order may contain provision as to which of the universities shall, either severally or jointly, nominate all or any of the members falling to be nominated in pursuance of the said paragraph 2(1)(c); and where such an order specifies more than one local authority in pursuance of paragraph 2(1)(d) above, the order may provide for each of the local authorities to appoint in pursuance of the said paragraph 2(1)(d) the number of members specified in the order in relation to that local authority.

PART II

MEMBERSHIP OF FAMILY PRACTITIONER COMMITTEES

6.—(1) Subject to paragraph 7 below, a Family Practitioner Committee shall consist of thirty members of whom—

- (a) eleven shall be appointed by the Area Health Authority responsible for establishing the Committee and at least one of them must be, but not every one of them shall be, a member of the Authority;
- (b) four shall be appointed by the local authority entitled in pursuance of paragraph 2(1)(d) above to appoint members of that Authority or, where two or more local authorities are so entitled, by those authorities acting jointly;
- (c) eight shall be appointed by the Local Medical Committee for the area of that Authority and one of them must be, and not more than one shall be, a medical practitioner having the qualifications prescribed in pursuance of section 41 of the principal Act (which relates to ophthalmic services);
- (d) three shall be appointed by the Local Dental Committee for that area;
- (e) two shall be appointed by the Local Pharmaceutical Committee for that area;
- (f) one shall be an ophthalmic optician appointed by such members of the Local Optical Committee for that area as are ophthalmic opticians; and
- (g) one shall be a dispensing optician appointed by such members of the said Local Optical Committee as are dispensing opticians;

and the members of a Family Practitioner Committee shall from time to time, in accordance with such procedure as may be prescribed, select one of their members to be the chairman of the Committee.

(2) If any appointment falling to be made in pursuance of the preceding sub-paragraph by or by certain members of a Local Committee is not made before such date as the Area Health Authority in question may determine for that appointment, the appointment shall be made by that Authority to the exclusion of the Committee or members in question.

(3) The members of a Local Committee who are mentioned in paragraphs (f) and (g) of sub-paragraph (1) of this paragraph may if they think fit appoint, in addition to the member of a Family

Sch. 1 Practitioner Committee appointed by them, an ophthalmic or, as the case may be, a dispensing optician to be the deputy of the member so appointed, and the Local Committee by which such a practitioner as is mentioned in paragraph (c) of the said sub-paragraph (1) is appointed in pursuance of that paragraph as a member of a Family Practitioner Committee may if it thinks fit appoint another such practitioner to be his deputy; and a deputy appointed in pursuance of this sub-paragraph may, while the member for whom he is the deputy is absent from any meeting of the relevant Family Practitioner Committee, act as a member of that Committee in the place of the absent member.

(4) If an Area Health Authority proposes to make before the appointed day an appointment in pursuance of paragraph (a) of sub-paragraph (1) of this paragraph, it shall be the duty of the Authority before it makes the appointment to consult such Executive Councils exercising functions in its area as the Authority considers appropriate.

7.—(1) If it appears to the Secretary of State that, by reason of special circumstances affecting the area of an Area Health Authority, it is appropriate that the Family Practitioner Committee established or to be established by the Authority should not be in accordance with the preceding paragraph, he may by order provide that that paragraph shall apply in relation to the Committee with such modifications as are specified in the order.

(2) It shall be the duty of the Secretary of State—

- (a) before he makes an order in pursuance of the preceding sub-paragraph in respect of a Family Practitioner Committee which is already established to consult the Committee with respect to the order; and
- (b) in making any such order to have regard to the desirability of maintaining, so far as practicable, the same numerical proportion as between members falling to be appointed by different bodies in pursuance of the preceding paragraph apart from any modification.

PART III

SUPPLEMENTARY PROVISIONS RELATING TO NEW AUTHORITIES

Corporate status

8. Each Regional Health Authority, Area Health Authority, special health authority and Family Practitioner Committee (hereafter in this Schedule referred to severally as “an authority”) shall be a body corporate with perpetual succession and a common seal.

Pay and allowances

9.—(1) The Secretary of State may pay to the chairman of an authority other than a Family Practitioner Committee such remuneration as he may determine with the approval of the Minister for the Civil Service.

(2) The Secretary of State may make such provision as he may determine as aforesaid for the payment of a pension, allowance or

gratuity to or in respect of the chairman of an authority other than such a Committee.

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(3) Where a person ceases to be the chairman of an authority other than such a Committee and it appears to the Secretary of State that there are special circumstances which make it right for him to receive compensation, the Secretary of State may make to him a payment of such amount as the Secretary of State may determine as aforesaid.

(4) The Secretary of State may pay to a member of an authority, or of a committee or sub-committee of an authority, such travelling and other allowances (including attendance allowance or compensation for loss of remunerative time) as he may determine as aforesaid.

(5) Allowances shall not be paid in pursuance of the preceding subparagraph except in connection with the exercise, in such circumstances as the Secretary of State may determine as aforesaid, of such functions as he may so determine.

(6) Payments in pursuance of this paragraph shall be made at such times and in such manner and subject to such conditions as the Secretary of State may determine as aforesaid.

Staff

10.—(1) An authority other than a Family Practitioner Committee may employ, on such terms as it may determine in accordance with regulations and such directions as may be given by the Secretary of State, such officers as it may so determine; and regulations made for the purposes of this subparagraph may contain provision—

- (a) with respect to the qualifications of persons who may be employed as officers of an authority;
- (b) requiring an authority to employ, for the purpose of performing prescribed functions of the authority or any other body, officers having prescribed qualifications or experience; and
- (c) as to the manner in which any officers of an authority are to be appointed.

(2) Regulations may make provision for the transfer of officers from one authority to another which is not a Family Practitioner Committee and for the making of arrangements under which the services of an officer of an authority are placed at the disposal of another authority or a local authority.

(3) The Secretary of State may direct an authority to place services of any of its officers at the disposal of another authority and, subject to any directions given by the Secretary of State in pursuance of this subparagraph, a Regional Health Authority may direct an Area Health Authority of which the area is included in its region to place services of any of its officers at the disposal of another such Area Health Authority; and it shall be the duty of an authority to which directions are given in pursuance of this subparagraph to comply with the directions.

(4) The Secretary of State may direct an authority, other than a Family Practitioner Committee, to employ as an officer of the

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authority any person who is or was employed by another authority and is specified in the direction, and a Regional Health Authority may direct an Area Health Authority of which the area is included in its region to employ as an officer of the Area Health Authority a person who is or was employed by an authority other than the Area Health Authority and is specified in the direction; and it shall be the duty of an authority to which a direction is given in pursuance of this sub-paragraph to comply with the direction.

(5) Regulations made in pursuance of this paragraph shall not require that all consultants employed by an authority are to be so employed whole-time.

11.—(1) It shall be the duty of the Secretary of State, before he makes regulations in pursuance of the preceding paragraph, to consult such bodies as he may recognise as representing persons who in his opinion are likely to be affected by the regulations.

(2) Subject to the following sub-paragraph, it shall be the duty of the Secretary of State or as the case may be of a Regional Health Authority, before he or the Authority gives directions to an authority in pursuance of sub-paragraph (3) or (4) of the preceding paragraph in respect of any officer of an authority, to consult the officer about the directions or to satisfy himself or itself that the authority of which he is an officer has consulted the officer about the placing or employment in question or (except in the case of a direction in pursuance of the said sub-paragraph (4)) to consult with respect to the directions such body as he or the Authority may recognise as representing the officer.

(3) If the Secretary of State or Regional Health Authority considers it necessary to give directions in pursuance of sub-paragraph (3) of the preceding paragraph for the purpose of dealing temporarily with an emergency and has previously consulted bodies recognised by him or the Authority as representing the relevant officers about the giving of such directions for that purpose, the Secretary of State or the Authority shall be entitled to disregard the preceding sub-paragraph in relation to the directions.

Miscellaneous

12. Provision may be made by regulations as to—

- (a) the appointment and tenure of office of the chairman and members of an authority;
- (b) the appointment of and the exercise of functions by committees and sub-committees of an authority (including joint committees and joint sub-committees of two or more authorities and committees and sub-committees consisting wholly or partly of persons who are not members of the authority in question);
- (c) the procedure of an authority and of such committees and sub-committees as are mentioned in the preceding sub-paragraph.

13. An authority may pay subscriptions, of such amounts as the Secretary of State may approve, to the funds of such bodies as he may approve.

14. The proceedings of an authority shall not be invalidated by any vacancy in its membership or by any defect in the appointment of a member of the authority.

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15.—(1) An authority shall, notwithstanding that it is exercising any function on behalf of the Secretary of State or another authority, be entitled to enforce any rights acquired in the exercise of that function, and be liable in respect of any liabilities incurred (including liabilities in tort) in the exercise of that function, in all respects as if it were acting as a principal; and proceedings for the enforcement of such rights and liabilities shall be brought, and brought only, by or as the case may be against the authority in question in its own name.

(2) An authority shall not be entitled to claim in any proceedings any privilege of the Crown in respect of the discovery or production of documents; but this sub-paragraph shall not prejudice any right of the Crown to withhold or procure the withholding from production of any document on the ground that its disclosures would be contrary to the public interest.

16. Provision may be made by regulations with respect to the recording of information by an authority and the furnishing of information by an authority to the Secretary of State or another authority.

SCHEDULE 2

Section 15(1).

HOSPITALS OF WHICH THE BOARDS OF GOVERNORS MAY BE PRESERVED

The teaching hospitals to which the following names are assigned by orders made by virtue of section 11 of the principal Act before the passing of this Act, that is to say—

The Hospitals for Sick Children

The National Hospitals for Nervous Diseases

The Royal National Throat, Nose and Ear Hospital

The Moorfields Eye Hospital

The Bethlem Royal Hospital and the Maudsley Hospital

St. John's Hospital for Diseases of the Skin

The Royal National Orthopaedic Hospitals

The National Heart and Chest Hospitals

St. Peter's Hospitals

The Royal Marsden Hospital

Queen Charlotte's Hospital for Women

The Eastman Dental Hospital.

SCHEDULE 3

Sections 34, 38
and 39.

MATTERS NOT SUBJECT TO INVESTIGATION BY HEALTH SERVICE COMMISSIONERS

1. Action taken in connection with the diagnosis of illness or the care or treatment of a patient, being action which, in the opinion of the Commissioner in question, was taken solely in consequence of

SCR. 3 the exercise of clinical judgment, whether formed by the person taking the action or by any other person.

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2. Action taken by an Executive Council or a Family Practitioner Committee in the exercise of its functions under the National Health Service (Service Committees and Tribunal) Regulations 1956 or any instrument amending or replacing those regulations.

3. Action taken in respect of appointments or removals, pay, discipline, superannuation or other personnel matters in relation to service under the Health Service Acts.

4. Action taken in matters relating to contractual or other commercial transactions, other than in matters arising from arrangements between a relevant body and another body which is not a relevant body for the provision of services for patients by that other body; and in determining what matters arise from such arrangements any arrangements for the provision of services at an establishment maintained by a Minister of the Crown for patients who are mainly members of the armed forces of the Crown shall be disregarded.

5. Action which has been or is the subject of an inquiry under section 70 of the principal Act.

Section 57.

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MINOR AND CONSEQUENTIAL AMENDMENTS OF ENACTMENTS

1936 c. 40.

The Midwives Act 1936

1. In section 2(3) of the Midwives Act 1936 (which relates to the appointment of midwives), the first reference to that Act shall be construed as including a reference to section 2 of the National Health Service Reorganisation Act 1973.

1936 c. 49.

The Public Health Act 1936

2. In section 1(1) of the Public Health Act 1936 (which imposes on local authorities the duty of carrying the Act into execution), after the words "carry this Act" there shall be inserted the words ", excluding Part VI except section 198,".

3. In section 143(3) of that Act (which provides that regulations may be made for the treatment of persons affected with certain diseases and specifies the authorities for the enforcement of the regulations), after the words "port health authorities" there shall be inserted the words "Regional Health Authorities, Area Health Authorities or special health authorities".

4. In section 169(1) of that Act (which provides that a person suffering from a notifiable disease may be removed to a hospital), for the words "Hospital Management Committee or Board of Governors" there shall be substituted the words "Area Health Authority responsible for the administration".

5. In section 187(2) of that Act (which requires an application for the registration of a person in respect of a nursing home to be accompanied by a fee of £1), for the words from "fee" onwards

there shall be substituted the words "fee of such amount as the Secretary of State may prescribe by regulations; and without prejudice to the operation of section 5(2) of the Statutory Instruments Act 1946 any such regulation shall be laid before Parliament".

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6. In section 244 of that Act (which provides that a person living in a common lodging house who is suffering from a notifiable disease may be removed to a hospital), for the words "Hospital Management Committee or Board of Governors" there shall be substituted the words "Area Health Authority responsible for the administration".

The Education Act 1944

1944 c. 31.

7. In subsection (4) of section 48 of the Education Act 1944 (which requires local education authorities to encourage and assist pupils to take advantage of the facilities for free medical treatment provided in pursuance of that section), for the words "such facilities as aforesaid" there shall be substituted the words "the provision for medical and dental inspection and treatment made for them in pursuance of section 3(1) or 3(2)(a)(i) of the National Health Service Reorganisation Act 1973" and for the words "medical treatment provided under this section" there shall be substituted the words "of the provision so made".

8. In section 114(1) of that Act, at the end of the definition of "Medical officer" there shall be inserted the words "or whose services are made available to that authority by the Secretary of State".

The Education Act 1946

1946 c. 50.

9. In section 4(2)(c) of the Education Act 1946 (which relates to buildings connected with the carrying out by local education authorities of their functions relating to medical inspection or treatment), for the words from "local" to "treatment" there shall be substituted the words "Secretary of State to carry out the functions conferred on him by section 3 of the National Health Service Reorganisation Act 1973".

The principal Act

10. In section 1 of the principal Act (which among other things provides for the establishment of the national health service and the provision of services in accordance with the following provisions of that Act), in subsection (1) for the words "the following provisions of this Act" there shall be substituted the words "the National Health Service Acts 1946 to 1973" and in subsection (2) for the words "this Act" there shall be substituted the words "those Acts".

11. In section 2 of that Act, in subsection (1) (which among other things provides for the Central Health Services Council to give advice to the Secretary of State about the services provided under that Act and any services provided by local health authorities), for the words from "under this Act" to "such authorities" there shall be substituted the words "under the National Health Service Acts 1946 to 1973" and in subsection (3) (which among other things provides for standing advisory committees to consist partly of members appointed by the Secretary of State after consultation with that

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Council as being persons of experience in relevant services) the words from "after consultation with that Council" to "those services" shall be omitted.

12.—(1) In section 3(2) of that Act (which relates to the supply as part of the hospital and specialist services of appliances of a more expensive type than the prescribed type and the replacement and repair of appliances), for the words "as part of the hospital and specialist services" in paragraph (a) and the words "as part of the services aforesaid" in paragraph (b) there shall be substituted the words "by him".

(2) In section 3(3) of that Act (which relates to the payment by the Secretary of State of travelling expenses in connection with hospital and specialist services), for the words "hospital and specialist services" there shall be substituted the words "any services provided under the National Health Service Acts 1946 to 1973".

13. In section 4 of that Act (which relates to hospital accommodation available on part payment), for the words from "in any hospital" to "available" there shall be substituted the words "at any hospital or group of hospitals vested in the Secretary of State or in which patients are treated under arrangements made by virtue of section 13(1) of the National Health Service Reorganisation Act 1973 or at the hospitals in a particular area which are vested in him or in which patients are so treated, accommodation in single rooms or small wards which is not for the time being needed by any patient on medical grounds, the Secretary of State may authorise the accommodation to be made available, to such extent as he may determine."

14. In section 16(1) of that Act (which relates to research connected with illness), after the word "illness" there shall be inserted the words "and into such other matters connected with any service provided under the National Health Service Acts 1946 to 1973 as the Secretary of State considers appropriate".

15. In section 17 of that Act (which authorises the Secretary of State to provide a bacteriological service for the control of infectious diseases), for the word "bacteriological" there shall be substituted the word "microbiological".

16. In section 18 of that Act (which among other things provides that where the Secretary of State has, in providing hospital and specialist services, acquired supplies of human blood for the purpose of carrying out a blood transfusion he may arrange for the supplies to be available to local health authorities and medical practitioners who require them in cases of emergency), for the words from "in providing" to "transfusion" there shall be substituted the words "acquired supplies of human blood for the purposes of any service under the National Health Service Acts 1946 to 1973" and for the words from "local" to "emergency" there shall be substituted the words "any person"; and the words "in cases of emergency" where they first occur shall be omitted.

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17.—(1) In section 22(1) of that Act (which requires local health authorities to make arrangements for the care, including in particular dental care, of nursing and expectant mothers and young children), the words “including in particular dental care” shall be omitted.

(2) In section 22(2) of that Act (which authorises the making and recovery of certain charges with the approval of the Minister) the words “with the approval of the Minister” shall be omitted.

18. In section 32 of that Act (which relates to local representative committees)—

- (a) for the words “Executive Council” in subsection (1) there shall be substituted the words “Area Health Authority”;
- (b) for the words “of that area” in subsection (1)(a) there shall be substituted the words “providing general medical services or general ophthalmic services in that area” and for the words “of that area” in subsection (1)(c) there shall be substituted the words “providing general dental services in that area”;
- (c) for the words “Executive Council” in subsection (2) there shall be substituted the words “Family Practitioner Committee for the area of an Area Health Authority in respect of which Local Committees are recognised in pursuance of the foregoing subsection”;
- (d) for the words “Executive Council” in both places where they occur and the word “Council” in subsection (3) there shall be substituted the words “Family Practitioner Committee” and for the words “that Committee” and “the Committee” wherever they occur in that subsection there shall be substituted the words “the Local Committee”;
- (e) for the word “Committee” in both places where it occurs in subsection (4) there shall be substituted the words “Local Committee”.

19.—(1) In section 33(1) of that Act (which imposes a duty on Executive Councils to make arrangements for the provision of general medical services), for the words “Executive Council” there shall be substituted the words “Area Health Authority”.

(2) After section 33(2) of that Act there shall be inserted the following subsection—

(3) Regulations under the last foregoing subsection may provide for the personal medical services there mentioned to include the provision of, and of services connected with, any such advice, examination and treatment as are mentioned in section 4 of the National Health Service Reorganisation Act 1973.

20. In section 34 of that Act (which relates to the distribution of medical practitioners providing services), for the words “Executive Councils”, “Executive Council” and “Council” in each place where they occur there shall be substituted respectively the words “Area Health Authorities”, “Area Health Authority” and “Authority”.

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21. In section 35(1) of that Act (which prohibits the sale of medical practices where the name of a medical practitioner is entered on any list of medical practitioners), in the proviso after the word "Council" there shall be inserted the words "or Area Health Authority".

22. After subsection (3) of section 36 of that Act (of which paragraph (d) requires the payment of interest on compensation payable in pursuance of that section), there shall be inserted the following subsection—

(3A) Regulations under subsection (3)(d) of this section may provide for the interest payable on any amount of compensation to be paid at a date later than the date on which the compensation is paid.

23. At the end of section 38(3) of that Act (which relates to charges for pharmaceutical services) there shall be inserted the words "; and it is hereby declared that regulations under this subsection may include provision in respect of charges for the supply of such substances and appliances as are mentioned in section 4 of the National Health Service Reorganisation Act 1973".

24. In section 39(1) of that Act (which provides that no medical or dental practitioner may supply pharmaceutical services to a patient except as provided by regulations), for the words "Executive Council" there shall be substituted the words "Area Health Authority".

25.—(1) In section 40(1) of that Act (which imposes a duty on Executive Councils to make arrangements for the provision of general dental services), for the words "Executive Council" there shall be substituted the words "Area Health Authority".

(2) In the proviso to section 40(1) of that Act (under which the remuneration of certain dental practitioners must not, except in special circumstances, consist wholly or mainly of a fixed salary), for the words from "except" onwards there shall be substituted the words "consist wholly or mainly of a fixed salary unless either—

(a) the remuneration is paid in pursuance of arrangements made under section 43 of this Act; or

(b) the services are provided in prescribed circumstances and the practitioner consents;

and it shall be the duty of the Secretary of State, before he prescribes any circumstances for the purposes of paragraph (b) above to consult such organisations as appear to him to be representative of the dental profession".

(3) At the end of section 40(2)(d) of that Act (which provides that regulations may prescribe duties of the Dental Estimates Board), there shall be inserted the words "and to the remuneration of dental practitioners providing general dental services".

(4) In section 40(2)(e) of that Act (which provides that regulations may make provision for certain matters in relation to the Board), for the words "Executive Council" there shall be substituted the words "Area Health Authority" and for the words "the supplementary

provisions of the Fifth Schedule to this Act" there shall be substituted the words "Part III of Schedule 1 to the National Health Service Reorganisation Act 1973".

26. In section 41(1) of that Act (which imposes a duty on Executive Councils to provide general ophthalmic services), for the words from "Part II" to "specialist services" there shall be substituted the words "section 2 of the National Health Service Reorganisation Act 1973 to provide" and for the words "Executive Council" there shall be substituted the words "Area Health Authority".

27. In section 42 of that Act (which provides for the constitution of a tribunal to enquire into cases of disqualification of practitioners), for the words "Executive Council" in each place where they occur and for the word "Councils" there shall be substituted respectively the words "Area Health Authority" and "Authorities".

28. In section 43 of that Act (which provides that the Secretary of State may make arrangements for services where services are inadequate), for the words "Executive Council" in both places where they occur there shall be substituted the words "Area Health Authority".

29. In section 47 of that Act (which provides for disputes to be referred to the Secretary of State), for the words "Executive Council" where they first occur there shall be substituted the words "Area Health Authority" and the words from "or between" to "health centre" shall be omitted.

30. In section 54(6) of that Act (which provides for payments under the section to be made in accordance with regulations), after the word "otherwise" there shall be inserted the word "as".

31.—(1) In section 55 of that Act (which relates to the accounts of existing health authorities), in subsection (2) for the words from the beginning to "Council" there shall be substituted the words "Every Regional Health Authority, Area Health Authority, special health authority, all Special Trustees appointed in pursuance of section 29(1) of the National Health Service Reorganisation Act 1973 and the Dental Estimates Board".

(2) In subsection (3) of that section, for the words "Committee and Council" there shall be substituted the words "Authority, special health authority and all such Special Trustees" and at the end of the subsection there shall be inserted the words "; and the accounts prepared and transmitted by an Area Health Authority in pursuance of this subsection shall include annual accounts of the Family Practitioner Committees established by the Authority and of any Community Health Council of which the district includes any part of the Authority's area."

(3) In subsection (4) of that section, for the words "Boards, Committees and Councils" there shall be substituted the words "Authorities, special authorities and Special Trustees".

32. In section 57(1) of that Act (which confers default powers on the Secretary of State), for the words from "Regional Hospital Board" to "Executive Council" there shall be substituted the

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words "Regional Health Authority, Area Health Authority, special health authority, Family Practitioner Committee", and after the words "this Act" there shall be inserted the words "or the National Health Service Reorganisation Act 1973".

33. In section 70 of that Act (which provides that the Secretary of State may hold an inquiry in connection with matters arising under that Act), after the words "this Act" there shall be inserted the words "or the National Health Service Reorganisation Act 1973".

34. In section 71 of that Act (which provides for the recovery of charges), after the words "this Act" in both places where they occur there shall be inserted the words "or the National Health Service Reorganisation Act 1973".

1875 c. 55.

35. In section 72 of that Act (which applies the provisions of section 265 of the Public Health Act 1875 relating to the protection of members and officers of certain authorities), for the words from "Regional Hospital Board" to "Executive Council" there shall be substituted the words "Regional Health Authority, an Area Health Authority, a special health authority and a Family Practitioner Committee" and for the words "this Act" there shall be substituted the words "the National Health Service Acts 1946 to 1973".

36. In section 74 of that Act (which relates to miscellaneous administrative matters), in paragraph (c) after the words "this Act" there shall be inserted the words "or the National Health Service Reorganisation Act 1973" and the words "local health authorities and" shall be omitted.

37. In section 79(1) of that Act (interpretation), in the definition of "medicine", for the words "includes any prescribed chemical re-agent" there shall be substituted the words "includes such chemical re-agents as are included in a list for the time being approved by the Secretary of State for the purposes of section 38(1) of this Act".

38. In Schedule 1 to that Act (which provides for the constitution of the Central Council and advisory committees), in paragraph 3 the words from "and the Central Council" onwards shall be omitted and in paragraph 4 after the word "fit" there shall be inserted the words "and as are approved by the Secretary of State".

39. In Schedule 7 to that Act, in paragraph 3 (which provides for associations of Executive Councils to be consulted about the appointment of one member of the tribunal concerned with the removal of names from the list of persons undertaking to provide services under Part IV of that Act), for the words "Executive Councils" in both places there shall be substituted the words "Family Practitioner Committees".

947 c. 19.

The Polish Resettlement Act 1947

40. In section 4(1) of the Polish Resettlement Act 1947 (which provides that the Secretary of State may provide health services for persons resettled in pursuance of that Act), after the word

"1946" there shall be inserted the words "or the National Health Service Reorganisation Act 1973," for the words "local health authorities, executive councils" there shall be substituted the words "Area Health Authorities", for the words "that Act" in the second place where they occur there shall be substituted the words "those Acts" and for the words "local health authorities" in the second place where they occur there shall be substituted the words "local social services authorities".

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The National Health Service (Scotland) Act 1947

1947 c. 27.

41. After subsection (3) of section 37 of the National Health Service (Scotland) Act 1947 (of which paragraph (d) requires the payment of interest on compensation payable in pursuance of that section), there shall be inserted the following subsection—

(3A) Regulations under subsection (3)(d) of this section may provide for the interest payable on any amount of compensation to be paid at a date later than the date on which the compensation is paid.

42.—(1) For subsection (1) of section 40 of that Act (which relates to arrangements for pharmaceutical services), there shall be substituted the following subsection—

(1) It shall be the duty of every Health Board to make in accordance with regulations arrangements as respects its area for the supply to persons who are in that area of—

- (a) proper and sufficient drugs and medicines and listed appliances which are ordered for those persons by a medical practitioner in pursuance of his functions in the health service, the health service for England and Wales, the Northern Ireland health service or the armed forces of the Crown (excluding forces of a Commonwealth country and forces raised in a colony); and
- (b) listed drugs and medicines which are ordered for those persons by a dental practitioner in pursuance of such functions;

and the services provided in accordance with the arrangements are in this Act referred to as "pharmaceutical services".

In this subsection—

"the health service" means the service established by section 1 of this Act;

"listed" means included in a list for the time being approved by the Secretary of State for the purposes of this subsection; and

"the health service for England and Wales" and "the Northern Ireland health service" mean respectively the health service established in pursuance of section 1 of the National Health Service Act 1946 or any service provided in pursuance of Article 4(a) of the Health and Personal Social Services (Northern Ireland) Order 1972.

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(2) In subsection (2) of that section for the words from "receiving general medical services" to "dental practitioner rendering those services" there shall be substituted the words "for whom they are ordered as mentioned in the last foregoing subsection to receive the drugs, medicines and appliances there mentioned".

43. In section 80(1) of that Act (interpretation), in the definition of "medicine", for the words "includes any prescribed chemical re-agent" there shall be substituted the words "includes such chemical re-agents as are included in a list for the time being approved by the Secretary of State for the purposes of section 40(1) of this Act".

1948 c. 29.*The National Assistance Act 1948*

44. In section 21(7) of the National Assistance Act 1948 (which provides among other things that a local authority may make arrangements for the provision of health services on premises in which accommodation is provided for persons under that section), for paragraph (c) there shall be substituted the following paragraph—

(c) arrange with a Regional Health Authority, Area Health Authority or special health authority for the provision on the premises by the authority of services under the National Health Service Acts 1946 to 1973 ;

and the words from "In this subsection" onwards shall be omitted.

45. In section 24(6) of that Act (which relates to the determination of the ordinary residence of a patient), for the words from "forming" to "1946" there shall be substituted the words "vested in the Secretary of State".

46. In section 29 of that Act (which provides for the local authority to make welfare arrangements for handicapped persons), in subsection (6)(b) after the word "1946" there shall be inserted the words "the National Health Service Reorganisation Act 1973".

47. In section 47 of that Act (which provides that persons in need of care and attention may be removed to suitable premises), in subsection (8) after the word "1946" there shall be inserted the words "or the National Health Service Reorganisation Act 1973".

1948 c. 64.*The National Service Act 1948*

48. In paragraph 3 of Schedule 1 to the National Service Act 1948 (which includes among the categories of persons not liable for service certain persons suffering from mental disabilities), for the words "Regional Hospital Board" there shall be substituted the words "Regional Health Authority or of an Area Health Authority of which the area is in Wales" and for the words from "local health authority", where they first occur, onwards there shall be substituted the words "council which is a local authority for the purposes of the Local Authority Social Services Act 1970 and so provided in pursuance of section 12 of the Health Services and Public Health Act 1968 or is otherwise receiving care from such a council in pursuance of that section".

The Recall of Army and Air Force Pensioners Act 1948

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49. In paragraph 2 of the Schedule to the Recall of Army and Air Force Pensioners Act 1948 (which includes among the categories of persons not liable to be recalled certain persons suffering from mental disabilities), for the words "Regional Hospital Board" there shall be substituted the words "Regional Health Authority, of an Area Health Authority of which the area is in Wales, of a special health authority or of a Health Board,".

1948 c. 8.
(12, 13 and 14
Geo. 6.).*The National Health Service (Amendment) Act 1949*

1949 c. 93.

50. In section 8 of the National Health Service (Amendment) Act 1949 (which relates to the removal of doubts as to the operation of section 35 of the principal Act), after the words "Executive Council" there shall be inserted the words "or an Area Health Authority".

51. In section 13(1) of that Act (which provides for the reference to arbitration of disputes as to conditions of service of persons employed in health services), after the words "the Act of 1946" there shall be inserted the words "or the National Health Service Reorganisation Act 1973".

52.—(1) In section 18(1) of that Act (which provides for the superannuation of offices of voluntary hospitals), for the words "Regional Hospital Boards" there shall be substituted the words "Area Health Authorities".

(2) In subsection (4) of that section, for the words "a Regional Hospital Board or the Board of Governors of a teaching hospital" there shall be substituted the words "the Secretary of State" and for the words "hospital and specialist services" there shall be substituted the words "services under the National Health Service Acts 1946 to 1973".

53. In section 23(1) of that Act (which provides that voluntary organisations may transfer property to a local health authority), for the words "a local health authority" and the words "the authority" there shall be substituted the words "the Secretary of State".

54. In section 25(2) of that Act (which provides that no payment shall be made under subsection (1) of that section to a medical practitioner in respect of an examination carried out as part of his duty to provide general medical services for the person examined or as part of his duty as an officer of a Regional Hospital Board or a Board of Governors), for the words "Regional Hospital Board or a Board of Governors of a teaching hospital" there shall be substituted the words "Regional Health Authority, an Area Health Authority or a special health authority".

55. In section 28 of that Act (which relates to the recovery of expenses from in-patients engaged in remunerative employment), for the words "hospital and specialist services" there shall be substituted the words "services under the National Health Service Acts 1946 to 1973".

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1950 c. 28.

The Shops Act 1950

56. In section 22(1) of the Shops Act 1950 (which specifies requirements to be complied with in respect of the employment of persons in the business of a shop on Sundays), in paragraph (v) of the proviso for the words "Executive Council" there shall be substituted the words "Area Health Authority".

57. In Schedule 5 to that Act (which specifies transactions for the purposes of which a shop may be open on Sundays), in paragraph 1(g) for the words "Executive Council" there shall be substituted the words "Area Health Authority".

1951 c. 31.

The National Health Service Act 1951

58.—(1) In section 1 of the National Health Service Act 1951 (which authorises charges for certain dental and optical appliances), in subsection (1) for the words "Part II or Part IV of those Acts respectively" there shall be substituted the words "the National Health Service Acts 1946 to 1973".

(2) In subsection (2) of that section, for the words "under the said Part II" there shall be substituted the words ", otherwise than under Part IV of the said Acts of 1946 and 1947".

(3) In subsection (3)(a) of that section, for the words "the said Part II" where they first occur there shall be substituted the words "the National Health Service Acts 1946 to 1973 otherwise than under Part IV of the said Act of 1946" and for those words in the second place where they occur there shall be substituted the words "those Acts".

(4) In subsection (4) of that section for the words "Executive Council" there shall be substituted the words "Area Health Authority or Family Practitioner Committee".

59.—(1) In the Schedule to that Act, at the end of the definition of "children's glasses" there shall be inserted the words "and which are supplied for a person who was, at the time of the examination or testing of sight leading to the supply of the glasses or of the first such examination or testing, under sixteen years of age or receiving full-time instruction in a school within the meaning of the Education Act 1944 or the Education (Scotland) Act 1962".

(2) In that Schedule, in the definition of "current specified cost", for the words "Part II of those Acts respectively" there shall be substituted the words "the National Health Service Acts 1946 to 1973 otherwise than under Part IV of the said Act of 1946".

1951 c. 53.

The Midwives Act 1951

60. In section 11 of the Midwives Act 1951 (which prohibits unqualified persons from acting for gain as maternity nurses in any area on and after the date on which that section is applied to the area by an order under subsection (2) of that section), subsection (2) and the words from "on or after" to "therein" in subsection (1) shall cease to have effect.

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61. In section 23(2) of that Act (which provides that the Central Midwives Board may apportion between local health authorities any deficit disclosed in its annual accounts), for the words from "the local" to "being" there shall be substituted the words "Regional Health Authorities and Area Health Authorities of which the areas are in Wales, in such proportions as may be determined by the Secretary of State".

62. Sections 26 and 27 of that Act (which authorise a local supervising authority to aid the training of midwives and to provide residential accommodation for pupil midwives) shall cease to have effect.

63. In section 29(2) of that Act (which provides for the payment of expenses of a prosecution for an offence under the Act), for the words from "council" to "borough" there shall be substituted the words "Regional Health Authority or the Area Health Authority of which the area is in Wales for the region or area respectively".

64. In section 31 of that Act (which defines local supervising authority for the purposes of the Act), for the words "Every local health authority throughout England and Wales" there shall be substituted the words "A Regional Health Authority and an Area Health Authority of which the area is in Wales", and for the words "area of the said authority" there shall be substituted the words "region or area of the authority".

The National Health Service Act 1952

1952 c. 25.

65.—(1) In section 1(1) of the National Health Service Act 1952 (which authorises charges for certain drugs, medicines and appliances), for the words from "as part" to "Part II" there shall be substituted the words "under the National Health Service Acts otherwise than under Part IV".

(2) In section 1(2)(c) of that Act (which provides that no charge is to be made under that section for the supply of an appliance for a young person), after the word "appliance", there shall be inserted the words "otherwise than in pursuance of section 4 of the National Health Service Reorganisation Act 1973".

66.—(1) In subsection (4) of section 7 of that Act (which among other things relates to the making of charges for medicines supplied in connection with free medical treatment for certain pupils), for the words from the beginning to "education authorities" there shall be substituted the words "For the purposes of subsections (1) and (2)(a) of section 3 of the National Health Service Reorganisation Act 1973 (which provides for the Secretary of State)".

(2) In subsection (6) of that section (supplementary and consequential provisions), for the words from "Regional" to "Council" there shall be substituted the words "Regional Health Authority, Area Health Authority or Family Practitioner Committee".

67. In section 8(1) of that Act (interpretation), for the word "1951" where it first occurs there shall be substituted the word "1973".

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1954 c. 56.

The Landlord and Tenant Act 1954

68. In section 57(6) of the Landlord and Tenant Act 1954 (which modifies on grounds of public interest certain rights of a tenant where property belongs to, or is held for the purposes of, a government department or specified other bodies), for the words from "Board of" to "1946" there shall be substituted the words "Regional Health Authority, Area Health Authority or special health authority" and for the words "that Act" there shall be substituted the words "the National Health Service Act 1946 and the National Health Service Reorganisation Act 1973".

The Medical Act 1956

1956 c. 76.

69.—(1) In section 16 of the Medical Act 1956, in subsection (1) (which provides that the expression "institution" includes a health centre only if it is a centre provided under section 21 of the principal Act, section 15 of the National Health Service (Scotland) Act 1947, or section 17 of the Health Services Act (Northern Ireland) 1948), for the words from "section 21" onwards there shall be substituted the words "section 2 of the National Health Service Reorganisation Act 1973, section 2 of the National Health Service (Scotland) Act 1972, or Article 5 of the Health and Personal Social Services (Northern Ireland) Order 1972".

(2) In subsection (2) of that section (which provides that employment in a health centre shall not be treated as employment for the purposes of section 15 of that Act unless it is employment by a medical practitioner in the provision of general medical services under Part IV of the principal Act, Part IV of the said Act of 1947 or Part II of the said Act of 1948, or employment in the provision of such out-patient services as are mentioned in the sections referred to in subsection (1) of that section), in paragraph (a) for the words from "said Act of 1946" to "1948" there shall be substituted the words "National Health Service Act 1946, Part IV of the National Health Service (Scotland) Act 1947 or Part VI of the said Order of 1972" and in paragraph (b) for the words from "such out-patient", where they first occur, onwards there shall be substituted the words "the services of specialists or other services provided for out-patients in a health centre provided as mentioned in the last foregoing subsection".

The Nurses Act 1957

1957 c. 15.

70. In the Nurses Act 1957, for the words "area nurse-training committee", "an area nurse-training committee" and "area nurse-training committees" wherever they occur there shall be substituted respectively the words "regional nurse-training committee", "a regional nurse-training committee" and "regional nurse-training committees".

71.—(1) In section 11 of that Act (which establishes nurse-training committees for hospital areas), in subsection (1) for the words "hospital area" there shall be substituted the words "region and for Wales" and for the word "area" in the third place where it occurs there shall be substituted the words "region or to Wales".

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(2) In subsection (2) of that section (which establishes nurse-training committees for hospital areas), for the words "hospital area" there shall be substituted the words "region or for Wales", for the word "area" in paragraphs (a), (b), (c)(iii) and (d) there shall be substituted the words "region or in Wales" and for subparagraphs (i) and (ii) of paragraph (c) there shall be substituted the following sub-paragraph—

(i) Area Health Authorities in the region or in Wales and special health authorities exercising functions there, and.

72. In section 12(1) of that Act (which provides that the General Nursing Council may adopt experimental schemes for the training of nurses), the words "situated in such hospital area" shall be omitted.

73. In section 13(1) of that Act (which provides for expenditure by a Hospital Management Committee or Board of Governors on the training of nurses), for the words from "Hospital Management" to "area" in the second place where it occurs there shall be substituted the words "Regional Health Authority, Area Health Authority or special health authority", for the words from "approved" to "for the area" there shall be substituted the words "approved by a regional nurse-training committee" and for the words "section 54 of the National Health Service Act 1946" there shall be substituted the words "section 47 of the National Health Service Reorganisation Act 1973".

74. In section 14 of that Act (which provides for contributions by a nurse-training committee towards the expenses of an authority or person engaged in the training of nurses), for the words "hospital area" and the word "area" in the third place where it occurs there shall be substituted respectively the words "region or for Wales" and "region or in Wales" and for the words from "Hospital Management Committee" to "teaching hospital" there shall be substituted the words "Regional Health Authority, Area Health Authority or special health authority".

75. In section 16 of that Act (which provides that a dispute between a nurse-training committee and a Hospital Management Committee or Board of Governors shall be determined by the General Nursing Council), for the words "hospital area" there shall be substituted the words "region or for Wales" and for the words from "Hospital Management Committee" to "in the area" there shall be substituted the words "Regional Health Authority, Area Health Authority or special health authority".

76. In section 33 of that Act (interpretation), after the definition of "prescribed" there shall be inserted the following definition—

"region" means a region determined for a Regional Health Authority in pursuance of the National Health Service Reorganisation Act 1973 ;.

77. In Schedule 1 to that Act (which provides for the constitution of the General Nursing Council), in paragraph 3(e) for the words "section 25 of the National Health Service Act 1946" there shall

SCH. 4 be substituted the words "section 2 of the National Health Service Reorganisation Act 1973 of attending persons in their homes".

78.—(1) In Schedule 2 to that Act (which provides for the membership of nurse-training committees), in paragraph 1 for the words "hospital area" there shall be substituted the words "region and the regional nurse-training committee for Wales" and in sub-paragraph (a) of that paragraph for the words "Regional Hospital Board for the area" there shall be substituted the words "Regional Health Authority for the region or in the case of the committee for Wales by the Secretary of State".

(2) In paragraph 1(b) of that Schedule for the words from "Boards" onwards there shall be substituted the words "Area Health Authorities of which the areas are in the region or, as the case may be, in Wales ;".

(3) For sub-paragraph (f) of paragraph 1 of that Schedule there shall be substituted the following sub-paragraph—

(f) persons appointed by the Regional Health Authority after consultation with the local education authorities in the region or, in the case of the committee for Wales, by the Secretary of State after consultation with the local education authorities in Wales ;.

(4) For sub-paragraph (g) of paragraph 1 of that Schedule there shall be substituted the following sub-paragraph—

(g) persons appointed by the Regional Health Authority after consultation with the university or universities with which the Authority is associated or, in the case of the committee for Wales, by the Secretary of State after consultation with the university or universities with which Wales is associated ;

and paragraph 1(e) of that Schedule shall be omitted.

(5) In paragraph 2(a) of that Schedule for the words "hospital area" there shall be substituted the words "region and the regional nurse-training committee for Wales".

(6) In paragraph 4(1) of that Schedule for the words "Regional Hospital Board for a hospital area" there shall be substituted the words "Regional Health Authority for a region and in Wales the duty of the Secretary of State", for the word "area" in the third place where it occurs there shall be substituted the words "region and for Wales, respectively" and for the word "Board" in the second place where it occurs there shall be substituted the word "Authority".

1957 c. 20.

The House of Commons Disqualification Act 1957

79.—(1) In Part II of Schedule 1 to the House of Commons Disqualification Act 1957 (which specifies bodies of which all members are disqualified under that Act), as it applies to the House of Commons of the Parliament of the United Kingdom, there shall be inserted at the appropriate points in alphabetical order—

(a) the entry "The National Health Service Staff Commission" ;

(b) the entry "The Welsh National Health Service Staff Commission".

(2) In Part III of Schedule 1 to that Act (which specifies offices of which the holders are disqualified under that Act), as it applies to the House of Commons of the Parliament of the United Kingdom, there shall be inserted at the appropriate points in alphabetical order—

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(a) the entry “Chairman in receipt of remuneration of any Regional Health Authority, Area Health Authority or Area Health Authority (Teaching) or of any special health authority”;

(b) the entry “Health Service Commissioner for England”;
and

(c) the entry “Health Service Commissioner for Wales”;

and in the Part substituted for the said Part III by Schedule 3 to that Act in relation to the Senate and House of Commons of Northern Ireland there shall be inserted at the appropriate places in alphabetical order the entries specified in paragraphs (b) and (c) above.

The Dentists Act 1957

1957 c. 28.

80. In section 42(4) of the Dentists Act 1957 (which relates to the meaning of national and local authority health services), the words “and local authority” shall be omitted and for paragraphs (a) to (d) there shall be substituted the words “of services under section 2 or 3 of the National Health Service Reorganisation Act 1973 or section 2, 5 or 6 of the National Health Service (Scotland) Act 1972 or Article 5, 8 or 9 of the Health and Personal Social Services (Northern Ireland) Order 1972 and services at health centres provided under the said sections 2 or Article 5”.

The Opticians Act 1958

1958 c. 32.

81. In section 21(2)(b) of the Opticians Act 1958 (which provides that the restrictions on the sale of optical appliances under subsection (1) of that section apply if the supply was effected in pursuance of arrangements made with any body on whom functions are conferred by Parts II or IV of the principal Act, Parts II or IV of the National Health Service (Scotland) Act 1947 or Parts II or III of the Health Services Act (Northern Ireland) 1948), after the word “1946,” there shall be inserted the words “the National Health Service Reorganisation Act 1973,” after the word “1947,” there shall be inserted the words “the National Health Service (Scotland) Act 1972,” and for the words “Part II or Part III of the Health Services Act (Northern Ireland), 1948” there shall be substituted the words “the Health and Personal Social Services (Northern Ireland) Order 1972”; and the words “Part II or” in both places where they occur shall be omitted.

The Public Records Act 1958

1958 c. 51.

82. In Schedule 1 to the Public Records Act 1958 (which determines what are public records for the purposes of that Act), in Part I of the Table in that Schedule, in the entry relating to the Department

SCH. 4 of Health and Social Security (which, before its amendment by Article 5(4)(b) of The Secretary of State for Social Services Order 1968, was the entry relating to the Ministry of Health) before the words "Welsh Board of Health" there shall be inserted the words—
 "records of property passing to Regional or Area Health Authorities or special health authorities under sections 23 to 26 of the National Health Service Reorganisation Act 1973.

records of property held by a Regional or Area Health Authority or special health authority under section 21 or 22 of the said Act of 1973".

1959 c. 72.

The Mental Health Act 1959

83. In section 3(1) of the Mental Health Act 1959 (which provides for the constitution of Mental Health Review Tribunals for areas of Regional Hospital Boards), for the words from "area" to "1946" there shall be substituted the words "region for which a Regional Health Authority is established in pursuance of the National Health Service Reorganisation Act 1973, and for Wales".

84. Without prejudice to the operation of section 41(1) of this Act, in section 14(3) of that Act (under which the registration authority, in relation to a home, is the council of the county or county borough in which the home is situated), for the words from "in relation" to "situated" there shall be substituted the words "means the Minister".

85. In section 17(1) of that Act (which among other things relates to the inspection of records kept in respect of nursing homes in accordance with byelaws), for the words from "accordance with byelaws" onwards there shall be substituted the words "pursuance of section 41(2)(b) of the National Health Service Reorganisation Act 1973".

86. In section 28(2) of that Act, for the words "a local health authority" there shall be substituted the words "the Secretary of State".

87. In section 37(2) of that Act (which provides that where an application is made to a regional hospital board to make an order for the discharge of a patient, certain persons there specified may visit the patient), for the words "regional hospital board" there shall be substituted the words "Regional Health Authority, Area Health Authority or a special health authority".

88.—(1) In section 47 of that Act, in subsection (3) (which specifies the authorities or persons who may make orders for the discharge of a patient), for the words "regional hospital board" there shall be substituted the words "Regional Health Authority, Area Health Authority or special health authority" and for the word "board" there shall be substituted the word "authority".

(2) At the end of subsection (4) of that section (which provides that the powers conferred by that section on an authority may be exercised by three or more members of the authority), there shall be inserted the words "or by three or more members of a committee or sub-committee of that authority or body which has been authorised by them in that behalf".

89. In section 56(3) of that Act (which among other things provides that regulations may determine the manner in which functions of regional hospital boards are to be exercised), for the words "or regional hospital boards" there shall be substituted the words "Regional Health Authorities, Area Health Authorities or special health authorities".

90. In section 59(1) of that Act, in paragraph (a) of the definition of "the managers", for the words from "for hospital" onwards there shall be substituted the words "as a hospital by or on behalf of the Secretary of State under the National Health Service Acts 1946 to 1973, the Area Health Authority or special health authority responsible for the administration of the hospital".

91. In sections 62(1) and 72(4) of that Act (which provide that at least one of the medical practitioners giving evidence or making a report under those sections shall be a practitioner approved by a local health authority for the purposes of section 28 of that Act), for the words "a local health authority" there shall be substituted the words "the Secretary of State".

92. In section 128(1)(b) of that Act (which makes it an offence for a man to have sexual intercourse with a woman who is a mentally disordered patient and is in his custody in pursuance of arrangements under the National Health Service Act 1946 or the National Assistance Act 1948), after the word "1948" there shall be inserted the words "or the National Health Service Reorganisation Act 1973,".

93. In section 132 of that Act (which provides that Regional Hospital Boards shall notify local health authorities of hospitals which have arrangements for the reception of urgent cases requiring treatment for mental disorder), for the words "Regional Hospital Board" there shall be substituted the words "Regional Health Authority and, in Wales, every Area Health Authority", for the word "area" in the second place where it occurs there shall be substituted the words "region or area, as the case may be," and for the word "Board" in both places where it occurs there shall be substituted the word "Authority".

94. In section 133(2) of that Act (which provides that the making of payments to persons under that section shall be included as services provided under Part II of the National Health Service Act 1946), after the word "1946" there shall be inserted the words "and the National Health Service Reorganisation Act 1973" and for the words "Part II of that Act" there shall be substituted the words "those Acts".

95. In section 147(1) of that Act (interpretation)—

- (a) in the definition of "hospital", for the words "for hospital and specialist services under Part II of that Act" there shall be substituted the words "as a hospital by or on behalf of the Secretary of State under the National Health Service Acts 1946 to 1973";
- (b) in the definition of "mental welfare officer", for the words "local health authority" there shall be substituted the words "local social services authority"; and

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- (c) in the definition of "special hospital", for the words "meaning assigned to it by Part VII of this Act" there shall be substituted the words "same meaning as in the National Health Service Reorganisation Act 1973".

The Radioactive Substances Act 1960

1960 c. 34.

96. In section 14(1) of the Radioactive Substances Act 1960 (which provides that Hospital Management Committees or Boards of Governors shall be treated as persons for the purposes of provisions of that Act dealing with the disposal of radioactive waste notwithstanding that their functions are exercised on behalf of the Secretary of State), for the words "a Hospital Management Committee" and "Hospital Management Committee" there shall be substituted respectively the words "an Area Health Authority" and "Area Health Authority"; and the words "or is a teaching hospital within the meaning of the National Health Service Act, 1946" and the words ", or (in the case of a teaching hospital) the Board of Governors," shall be omitted.

The Public Health Laboratory Service Act 1960

1960 c. 49.

97. In section 5(2) of the Public Health Laboratory Service Act 1960 (which defines "the public health laboratory service"), for the word "bacteriological" there shall be substituted the word "microbiological".

98. In the Schedule to that Act (which provides for the constitution of the Public Health Laboratory Service Board), in paragraph 2 for the word "bacteriological" there shall be substituted the word "microbiological", in paragraph 3(b) for the word "bacteriologists" there shall be substituted the word "microbiologists" and for paragraph 3(d) there shall be substituted the following paragraph—

- (d) not less than one person with experience of service in hospitals, and.

The Public Bodies (Admission to Meetings) Act 1960

1960 c. 67.

99. In paragraph 1 of the Schedule to the Public Bodies (Admission to Meetings) Act 1960 (which specifies the bodies in England and Wales to which that Act applies), for paragraph (f) there shall be substituted the following paragraph—

- (f) Regional Health Authorities, Area Health Authorities and Community Health Councils and, if the order establishing a special health authority so provides, that authority; and paragraph (g) (which relates to Executive Councils) shall be omitted.

National Health Service Act 1961

1961 c. 19.

100. In section 1(4) of the National Health Service Act 1961 (which provides for exemption from certain charges for spectacles), for the words from "Part II" to "1946" there shall be substituted the words "the National Health Service Acts 1946 to 1973".

101. In section 3(1) of that Act (interpretation), in paragraph (a) of the definition of "the relevant time", for the words "Part II of

the Act of 1946" there shall be substituted the words "the National Health Service Acts 1946 to 1973 otherwise than under Part IV of the Act of 1946" and for the words "Part II or Part IV thereof" there shall be substituted the words "those Acts"; and in paragraph (b) of that definition for the words "either of the said Acts" there shall be substituted the words "the Act of 1946".

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The Health Visiting and Social Work (Training) Act 1962 1962 c. 33.

102.—(1) In paragraph 3 of Schedule 1 to the Health Visiting and Social Work (Training) Act 1962 (which specifies the persons by whom members of the Council for Education and Training of Health Visitors are to be appointed), in sub-paragraph (a) for the word "fourteen" there shall be substituted the word "twenty".

(2) For sub-paragraph (c) of paragraph 3 of that Schedule there shall be substituted the following sub-paragraph—

(c) such number as the Secretary of State may determine by such bodies as he may think fit, being bodies representative of local authorities in England and Wales, and in this sub-paragraph "local authorities" means authorities established by or under the Local Government Act 1972 or the London Government Act 1963.

(3) For sub-paragraph (f) of paragraph (3) of that Schedule there shall be substituted the following sub-paragraph—

(f) such number as the Secretary of State may determine by such bodies as he may think fit, being bodies representative of local authorities in Scotland, and in this sub-paragraph "local authorities" means local authorities within the meaning of the Local Government (Scotland) Act 1947;

and sub-paragraphs (d), (e), (g) and (h) of that paragraph shall be omitted.

(4) In paragraphs 5(b) and 10 of that Schedule for the words "the Society of Medical Officers of Health" there shall be substituted the words "bodies appearing to the Health Ministers to represent specialists in community medicine".

The London Government Act 1963

1963 c. 33.

103. Subsections (1) to (6) of section 32 of the London Government Act 1963 (which relate to the co-ordination of school and other health services in inner London) shall cease to have effect.

The Emergency Laws (Re-enactment and Repeals) Act 1964

1964 c. 60.

104. In section 15 of the Emergency Laws (Re-enactment and Repeals) Act 1964 (interpretation), for the words "1946 to 1961" there shall be substituted the words "1946 to 1973".

The Public Health (Notification of Births) Act 1965

1965 c. 42.

105. In section 1(2) of the Public Health (Notification of Births) Act 1965 (which amends section 203(2) of the Public Health Act 1936 and imposes an obligation on welfare authorities to supply

- SCH. 4** pre-paid addressed envelopes containing the form of notice to be given under that section), for the words "welfare authorities" there shall be substituted the words "Area Health Authorities".

1965 c. 62.

The Redundancy Payments Act 1965

106. In Schedule 3 to the Redundancy Payments Act 1965 (which specifies bodies the employees of which are excluded from the general provisions as to redundancy payments provided for in section 1 of that Act), for paragraph 1 there shall be substituted the following paragraph—

1. A Regional Health Authority, Area Health Authority, special health authority, Health Board or the Common Services Agency for the Scottish Health Service.

1966 c. 27.

The Building Control Act 1966

107. In section 5(1) of the Building Control Act 1966 (which among other things provides that any work carried out at the expense of any body corporate constituted under section 11 of the principal Act shall be exempt from control under the said Act of 1966), in paragraph (h) for the words "constituted under section 11 of the National Health Service Act 1946" there shall be substituted the words "established in pursuance of section 5 of the National Health Service Reorganisation Act 1973".

1967 c. 9

The General Rate Act 1967

108. In section 45 of the General Rate Act 1967 (which provides for relief from rates in respect of facilities for disabled persons), for the words "local health authority" in paragraph (b) there shall be substituted the words "local social services authority".

1967 c. 13.

The Parliamentary Commissioner Act 1967

109. In Schedule 3 to the Parliamentary Commissioner Act 1967 (which specifies matters which are not subject to investigation by the Commissioner under that Act), in paragraph 8 for the words "Regional Hospital Board, Board of Governors of a Teaching Hospital, Hospital Management Committee or Board of Management" there shall be substituted the words "Regional Health Authority, an Area Health Authority, a special health authority, a Family Practitioner Committee, a Health Board or the Common Services Agency for the Scottish Health Service".

The Superannuation (Miscellaneous Provisions) Act 1967

110. In subsection (1) of section 7 of the Superannuation (Miscellaneous Provisions) Act 1967 (which provides for an extension of superannuation provisions of the National Health Service Acts), in paragraph (a) for the words "Act 1946" there shall be substituted the words "Acts 1946 to 1973" and in paragraph (b) for the words "Act of 1946" there shall be substituted the words "Acts of 1946 to 1973".

The Leasehold Reform Act 1967

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111.—(1) In subsection (5) of section 28 of the Leasehold Reform Act 1967 (which includes Regional Hospital Boards, Hospital Management Committees and Boards of Governors as bodies to which the provisions of that section relating to the retention and resumption of land required for public purposes apply), for paragraph (d) there shall be substituted the following paragraph—

(d) to any Regional Health Authority, any Area Health Authority and any special health authority; and.

(2) In subsection (6) of that section (which in the case of a Regional Hospital Board, Hospital Management Committee or Board of Governors substitutes the purposes of the National Health Service Act 1946 for the purposes of any body in the definition of the expression “relevant development”), for paragraph (c) there shall be substituted the following paragraph—

(c) in the case of a Regional Health Authority, Area Health Authority or special health authority, the purposes of the National Health Service Acts 1946 to 1973 shall be substituted for the purposes of the body.

The Health Services and Public Health Act 1968

1968 c. 46.

112.—(1) In sections 1(1) and 2(1) of the Health Services and Public Health Act 1968 (which relate to the treatment of resident and non-resident private patients at hospitals providing hospital and specialist services), for the words “providing hospital and specialist services” there shall be substituted the words “or group of hospitals vested in him or of the hospitals vested in him in a particular area” and after the words “the hospital” there shall be inserted the words “or hospitals in question”.

(2) In section 1(2) and (3) of that Act, for the words “providing hospital and specialist services” there shall be substituted the words “vested in the Secretary of State”.

113. In section 17(1) of that Act (which provides that “supplementary ophthalmic services” shall be referred to as “general ophthalmic services”), for the words “Executive Councils” there shall be substituted the words “Area Health Authorities”.

114. In section 28(2) of that Act (under which regulations may make provision generally with respect to audit under section 55(2) of the principal Act), for the words “the said subsection (2)” there shall be substituted the words “section 55(2) of the 1946 Act”.

115. In section 29(1) of that Act (which provides for the control of the making of payments by or on behalf of Regional Hospital Boards and certain other existing health authorities), for the words from “Regional” to “1946 Act” there shall be substituted the words “Regional Health Authorities, Area Health Authorities, special health authorities, Family Practitioner Committees, Community Health Councils”.

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116. In section 30(1) of that Act (which provides for the grant of certificates of exemption from prescription charges), for the words from "as part of" to "Part II" there shall be substituted the words "under the National Health Service Acts 1946 to 1973 otherwise than under Part IV".

117. In section 31 of that Act (under which the Secretary of State may allow persons to use, on terms which may include the payment of charges, any services provided in connection with hospital and specialist services and may for that purpose provide extended services), for the words from "any services the provision" to "services if" there shall be substituted the words "any services provided by virtue of the National Health Service Acts 1946 to 1973 and may provide the services in question to an extent greater than that necessary apart from this section if".

118. In section 32 of that Act (under which the Secretary of State may sell or otherwise dispose of goods he produces in connection with the hospital and specialist services and may for that purpose produce goods in excess of those needed for those services), for the words "hospital and specialist services" there shall be substituted the words "services under the National Health Service Acts 1946 to 1973" and for the words "the 1946 Act" in both places where they occur there shall be substituted the words "the National Health Service Acts 1946 to 1973".

119. In section 36(1) of that Act (which provides that the Secretary of State may pay allowances and remuneration to members of certain bodies), in paragraph (b) for the words "1946 Act" there shall be substituted the words "National Health Service Acts 1946 to 1973".

120. In section 40(1) of that Act (which provides that the Secretary of State may make arrangements for the accommodation of persons displaced in the course of development for purposes of the Acts relating to the national health service or to mental health), after the words "Mental Health Act 1959" there shall be inserted the words "or the National Health Service Reorganisation Act 1973".

121. At the end of section 45(4)(b) of that Act (which prohibits a local authority when making arrangements for the welfare of old people from making available accommodation or services required to be provided under the National Health Service Act 1946), after the words "this Act" there shall be added the words "or the National Health Service Reorganisation Act 1973".

122.—(1) In section 48 of that Act (which provides for the reporting of cases of notifiable diseases and food poisoning to local authorities), for subsection (2) there shall be substituted the following subsection—

(2) The officer who receives the certificate aforesaid shall, on the day of its receipt (if possible) and in any case within forty-eight hours after its receipt, send a copy of the certificate—

(a) to the Area Health Authority within whose area are situate the premises whose address is specified in the certificate by virtue of paragraph (a) of the foregoing subsection; and

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(b) if the certificate is given with respect to a patient in a hospital who came there from premises outside the district of the local authority within whose district the hospital is situate and the certificate states that the patient did not contract the disease or the poisoning in the hospital—

(i) to the proper officer for the district within which the premises from which the patient came are situate, and

(ii) to the Area Health Authority for the area in which those premises are situate if that Authority is not responsible for the administration of the hospital, and

(iii) to the proper officer of the relevant port health authority constituted in pursuance of section 2 of the Public Health Act 1936 if those premises were a ship or hovercraft situate within the port health district for which that authority is constituted.

(2) Subsection (3) of that section shall be omitted.

123. In section 62(1) of that Act (which provides for references to vessels in the Public Health Act 1936 and references to ships in the Food and Drugs Act 1955 to include references to hover vehicles), for the words from “hover vehicles” to “air” there shall be substituted the words “hovercraft within the meaning of the Hovercraft Act 1968”.

124.—(1) In section 63 of that Act (which provides for the instruction of officers of hospital authorities and other persons employed in activities connected with health welfare), in subsection (1)(a) for the words from “Regional” to “teaching hospital” there shall be substituted the words “Regional Health Authority, Area Health Authority or a special health authority”.

(2) In subsection (1)(b) of that section for the words from “specified” to “Treasury” there shall be substituted the words “determined by him”.

(3) In subsection (2)(a) of that section for the words “county, county borough” there shall be substituted the words “non-metropolitan county, metropolitan district”.

(4) In subsection (2)(b) of that section for the words “Executive Council” there shall be substituted the words “Area Health Authority”.

(5) In subsection (8) of that section at the end of the definition of “the relevant enactments” there shall be inserted the words “and the National Health Service Reorganisation Act 1973”.

125.—(1) In section 64 of that Act (which provides that the Secretary of State may give financial assistance to voluntary organisations), at the end of subsection (3)(a) there shall be inserted the words “the National Health Service Reorganisation Act 1973”.

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(2) In subsection (3)(b) of that section for the words "county, county borough" there shall be substituted the words "non-metropolitan county, metropolitan district" and for the words "Executive Council" there shall be substituted the words "Area Health Authority".

126. In section 65 of that Act (which provides that local authorities may give financial and other assistance to certain voluntary organisations), at the end of subsection (3)(b) there shall be inserted the words "the National Health Service Reorganisation Act 1973".

127. In section 70(1) of that Act (which provides that a copy of a notice given by a keeper of a common lodging house under section 242 of the Public Health Act 1936 shall be sent by the local authority to the local health authority), for the words from the beginning to "receives" there shall be substituted the words "The local authority within whose district a common lodging house is situate shall, on the day on which they receive" and for the words "local health authority" in the second place where they occur there shall be substituted the words "Area Health Authority".

1968 c. 67.

The Medicines Act 1968

128.—(1) In section 55(2)(b) of the Medicines Act 1968 (which provides that the restrictions imposed by that Act on the supply of a medicinal product do not apply where the product is delivered or administered by a midwife and supplied in pursuance of arrangements made by a local health authority), for the words from "a local health authority" onwards there shall be substituted the words "the Secretary of State or the Ministry of Health and Social Services for Northern Ireland."

(2) In section 131(5) of that Act (which provides that for the purposes of that section the provision of services by the Secretary of State under the principal Act shall be treated as the carrying on of a business by the Secretary of State), for the words "Act 1946" there shall be substituted the words "Acts 1946 to 1973" and for the words "Health Services Acts (Northern Ireland) 1948 to 1967" there shall be substituted the words "Health and Personal Social Services (Northern Ireland) Order 1972".

(3) In section 132(1) of that Act (interpretation), in the definition of "health centre" for the words "section 21 of the National Health Service Act 1946" there shall be substituted the words "section 2 of the National Health Service Reorganisation Act 1973" and for the words "section 17 of the Health Services Act (Northern Ireland) 1948" there shall be substituted the words "Article 5 of the Health and Personal Social Services (Northern Ireland) Order 1972."

The Nurses Act 1969

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129. In section 6 of the Nurses Act 1969 (which provides that allowances may be paid to members of an area nurse-training committee or (in Scotland) a regional nurse-training committee), the words from the beginning to “(in Scotland)” shall be omitted. 1969 c. 47.

The Post Office Act 1969

1969 c. 48.

130. In section 86(1) of the Post Office Act 1969 (interpretation), in paragraph (a) of the definition of “national health service authority” for the words from “regional” onwards there shall be substituted the words “Regional Health Authority, Area Health Authority, special health authority or Family Practitioner Committee;” and in paragraph (c) of that definition for the words from “means” onwards there shall be substituted the words “means a Health and Social Services Board, the Northern Ireland Central Services Agency for the Health and Social Services or the Northern Ireland Staffs Council for the Health and Social Services established under the Health and Personal Social Services (Northern Ireland) Order 1972.”.

The Local Authority Social Services Act 1970

1970 c. 42.

131.—(1) In Schedule 1 to the Local Authority Social Services Act 1970 (which specifies the enactments conferring functions assigned to the social services committee of a local authority), at the end of the entry relating to the Health Visiting and Social Work (Training) Act 1962 there shall be inserted the following—

Section 5(1)(c)

Research into matters relating to functions of local authorities.

(2) In that Schedule, at the end of the entry relating to the Health Services and Public Health Act 1968 there shall be inserted the following—

Section 65

Financial and other assistance to voluntary organisations.

The Chronically Sick and Disabled Persons Act 1970

1970 c. 44.

132.—(1) In section 17(1) of the Chronically Sick and Disabled Persons Act 1970 (which provides that Regional Hospital Boards and Boards of Governors shall secure, so far as practicable, that younger patients are separated from older patients), for the words “Every board” to “teaching hospital)” there shall be substituted the words “The Secretary of State”.

(2) For subsection (2) of that section (which provides that the Boards shall provide the Secretary of State with information as to

SCH. 4 persons to whom subsection (1) applies and that he shall lay before Parliament a statement of that information), there shall be substituted the following subsection—

- (2) The Secretary of State shall in each year lay before each House of Parliament a statement, in such form as he considers appropriate, of information as to any persons to whom subsection (1) of this section applied who, not being elderly persons, have during the preceding year been cared for in a hospital vested in him and in such part of the hospital as is mentioned in that subsection.

1971 c. 56.

The Pensions (Increase) Act 1971

133. At the end of paragraph 22 of Schedule 2 to the Pensions (Increase) Act 1971 (by virtue of which certain pensions payable by the Secretary of State under enactments relating to the health service are official pensions for the purposes of that Act) there shall be inserted the following sub-paragraph—

- (d) section 44 of the National Health Service Reorganisation Act 1973 or section 34A of the National Health Service (Scotland) Act 1972.

1971 c. 62.

The Tribunals and Inquiries Act 1971

134. In Part I of Schedule 1 to the Tribunals and Inquiries Act 1971 (which among other things provides that Executive Councils and service committees of Executive Councils are tribunals under the direct supervision of the Council on Tribunals), for paragraph 17(a) there shall be substituted the following—

17. (a) Family Practitioner Committees established in pursuance of section 5 of the National Health Service Reorganisation Act 1973 ;

and in paragraph 17(c) for the words “an Executive Council” there shall be substituted the words “a Family Practitioner Committee” and for the words “Act 1946 (c. 81)” there shall be substituted the words “Acts 1946 to 1973”.

1971 c. 72.

The Industrial Relations Act 1971

135.—(1) In section 167 of the Industrial Relations Act 1971 (interpretation), in subsection (2)(a) for the words “Executive Council” there shall be substituted the words “Area Health Authority or Family Practitioner Committee” and after the words “1946 or” there shall be inserted the words “by a Health Board”.

(2) In subsection (2)(b) of that section for the words “Executive Council” there shall be substituted the words “Area Health Authority, Family Practitioner Committee or Health Board”.

1972 c. 20.

The Road Traffic Act 1972

136.—(1) In section 156 of the Road Traffic Act 1972 (which provides that payment for hospital treatment of a traffic casualty shall be made to a Regional Hospital Board or a Board of Governors of a teaching hospital), in subsection (1)(a) for the words from

"National Health Service Act 1946" onwards there shall be substituted the words "National Health Service Acts 1946 to 1973, to the Area Health Authority or special health authority responsible for the administration of the hospital or to the Secretary of State if no such authority is so responsible".

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(2) Paragraphs (b) and (c) of subsection (1) of that section shall be omitted.

(3) In subsections (2)(a) and (3) of that section for the word "Board" there shall be substituted the word "Authority".

The Employment Medical Advisory Service Act 1972

1972 c. 28.

137. In section 1(6) of the Employment Medical Advisory Service Act 1972 (which imposes on every local education authority the duty of arranging for one of its officers who is a medical practitioner to furnish to an employment medical adviser such particulars of the school medical report and other medical history of a person who is under eighteen as the adviser requires for the efficient performance of his functions), for the words from "every" to "officers" there shall be substituted the words "the Secretary of State to secure that each Area Health Authority arranges for one of its officers".

The National Health Service (Scotland) Act 1972

1972 c. 58.

138. In section 22 of the National Health Service (Scotland) Act 1972 (supply of goods and services to local authorities, etc.), after subsection (2) there shall be added the following subsection—

(3) The Secretary of State may by order provide that, in relation to a vehicle which is made available by him in pursuance of this section and is used in accordance with the terms on which it is so available, the Vehicles (Excise) Act 1971 and Part VI of the Road Traffic Act 1972 shall have effect with such modifications as are specified in the order.

139. In section 23 of that Act (assistance to voluntary organisations), after subsection (1) there shall be added the following subsection—

(1A) The Secretary of State may by order provide that, in relation to a vehicle which is made available by him in pursuance of this section and is used in accordance with the terms on which it is so available, the Vehicles (Excise) Act 1971 and Part VI of the Road Traffic Act 1972 shall have effect with such modifications as are specified in the order.

140. In section 34(2) of that Act (transfer of other staff), after paragraph (f) there shall be inserted the following paragraph—

(g) an education authority wholly or mainly as a speech therapist for the purposes of providing special education in pursuance of sections 1 and 3A of the Education (Scotland) Act 1962.

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141. After section 34 of that Act there shall be inserted the following section—

Provision
for early
retirement
in lieu of
compensa-
tion for loss
of office.

34A.—(1) In order to facilitate the early retirement of certain persons who might otherwise suffer, in consequence of this Act, loss of employment or loss or diminution of emoluments, any person who—

- (a) is in any such employment as may be prescribed for the purposes of this subsection ; and
- (b) attains or has attained the age of fifty on or before a prescribed date ; and
- (c) fulfils such other conditions as may be prescribed ;

may by notice given before a prescribed date and in the prescribed manner elect that this section shall apply to him.

(2) Where any person has made an election under the preceding subsection, then, unless within a prescribed period notice of objection to the election is given to him by a prescribed person, this section shall apply to him on his retirement within a prescribed period and before attaining the normal retiring age and compensation on his retirement shall not be payable to or in respect of him in pursuance of section 24 of the Superannuation Act 1972 (which among other things relates to compensation for loss of office).

(3) Subject to the following subsection, the Secretary of State shall by regulations provide for the payment by him to or in respect of a person to whom this section applies of benefits corresponding, as near as may be, to those which would have been paid to or in respect of that person under the relevant superannuation scheme if—

- (a) at the date of his retirement he had attained the normal retiring age ; and
- (b) the actual period of his reckonable service were increased by such period as may be prescribed, not exceeding the period beginning on the date of his retirement and ending on the date on which he would attain the normal retiring age.

(4) Regulations in pursuance of the preceding subsection shall be so framed as to secure that the sums which would otherwise be payable under the regulations in accordance with that subsection to or in respect of any person are reduced to take account of any benefits payable to or in respect of him under the relevant superannuation scheme.

(5) Any sums payable under regulations made in pursuance of subsection (3) of this section shall be treated for the purposes of section 73 of the Finance Act 1972 (under

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which compensation for loss of office or employment is chargeable to tax as a payment made on retirement or removal from office or employment) in like manner as compensation paid in pursuance of the said section 24.

(6) In this section—

“normal retiring age” means—

(a) in relation to any person to whom an age of compulsory retirement applies by virtue of the relevant superannuation scheme, that age ; and

(b) in relation to any other person, the age of sixty-five in the case of a man and sixty in the case of a woman or, in either case, such other age as may be prescribed ;

“reckonable service”, in relation to any person, means service in respect of which benefits are payable under the relevant superannuation scheme ; and

“relevant superannuation scheme”, in relation to any person, means the instrument which is applicable in the case of his employment and which makes provision with respect to the pensions, allowances or gratuities which, subject to the fulfilment of certain requirements and conditions, are to be, or may be, paid to or in respect of persons in that employment.

142. In section 43(2) of that Act (which provides that, subject to the provisions of that section, Schedule 1 to the Parliamentary Commissioner Act 1967 shall apply to persons who have held office as Health Service Commissioner for Scotland), after the word “section” there shall be inserted the words “and subsection (4) to (6) of section 32 of the National Health Service Reorganisation Act 1973”.

143. For subsection (2) of section 44 of that Act (administrative provisions), there shall be substituted the following subsection—

(2) Any function of the Commissioner under this Part of this Act may be performed by any officer of the Commissioner authorised for that purpose by him or by any officer so authorised of another Commissioner mentioned in subsection (4) of section 32 of the National Health Service Reorganisation Act 1973.

144. For subsection (2) of section 45 of that Act (bodies and action subject to investigation), there shall be substituted the following subsection—

(2) Subject to the provisions of this section, the Commissioner may investigate—

(a) an alleged failure in a service provided by a body subject to investigation ; or

(b) an alleged failure of a body subject to investigation to provide a service which it was a function of the body to provide ; or

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(c) any other action taken by or on behalf of a body subject to investigation,

in a case where a complaint is duly made by or on behalf of any person that he has sustained injustice or hardship in consequence of the failure or in consequence of maladministration connected with the other action.

In this subsection, "function" includes a power and a duty.

145.—(1) In section 46(2) of that Act (provisions relating to complaints), for the word "other" there shall be substituted the words "by some body or".

(2) In subsection (4) of that section at the end there shall be inserted the words "; but the Commissioner may disregard the preceding provisions of this subsection in relation to a complaint made by an officer of the body subject to investigation on behalf of the person aggrieved if the officer is authorised by virtue of subsection (2) of this section to make the complaint and the Commissioner is satisfied that in the particular circumstances those provisions ought to be disregarded."

146. In section 47 of that Act (application of certain provisions of the Parliamentary Commissioner Act 1967), the words "except subsection (4)", where they first occur, shall be omitted; and at the end there shall be added the words "In sections 7(1) and 8(1) of the said Act of 1967 as applied by this section, the words 'the principal officer of' and 'Minister' shall be omitted."

147. For section 65(3) of that Act (extent), there shall be substituted the following subsection—

(3) The following provisions of this Act shall extend to England and Wales, namely, this subsection, sections 42(4), 47, 48(5), 50(1), paragraphs 104, 128, 130, 143 to 145 and 152 of Schedule 6, Schedule 7 so far as it relates to paragraphs 3 and 5 of Schedule 3 to the Redundancy Payments Act 1965 and subsection (1) of this section so far as it relates to the other provisions mentioned in this subsection.

148. After section 65(3) of that Act there shall be inserted the following subsection—

(4) The following provisions of this Act shall extend to Northern Ireland, namely, this subsection, sections 42(4), 47, 48(5), 50(1), paragraphs 104, 128, 130, 143 to 145 and 152 of Schedule 6 and subsection (1) of this section so far as it relates to the other provisions mentioned in this subsection.

149. In Schedule 6 to that Act (minor and consequential amendments to enactments), after paragraph 20 there shall be inserted the following paragraph—

20A. In section 18(5) (application to Scotland of provisions in respect of superannuation of officers of certain hospitals), at the end there shall be added the words ", for the reference to Regional Hospital Boards or Area Health Authorities of a reference to Health Boards, and for the reference to services under the National Health Service Acts 1946 to 1973 of a

reference to services under the National Health Service (Scotland) Acts 1947 to 1973".

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150. In Schedule 6 to that Act (minor and consequential amendments to enactments), after paragraph 156 there shall be inserted the following paragraph—

The Road Traffic Act 1972

156A.—(1) In section 156(1)(c) of the Road Traffic Act 1972 (which provides that payment for hospital treatment of a traffic casualty will be made payable to the Secretary of State or to a Regional Hospital Board or Board of Management), for the words from "Regional" to "Management" there shall be substituted the words "Health Board".

Local Government Act 1972

1972 c. 70.

151.—(1) At the end of section 113(1) of the Local Government Act 1972 (which gives power to a local authority to place officers at the disposal of another local authority) there shall be inserted the following subsection—

(1A) Without prejudice to any powers exercisable apart from this section, a local authority may enter into an agreement with a Regional Health Authority, Area Health Authority or special health authority—

- (a) for the placing at the disposal of the Regional or Area Health Authority or special health authority for the purposes of their functions, on such terms as may be provided by the agreement, of the services of officers employed by the local authority ;
- (b) for the placing at the disposal of the local authority for the purposes of their functions, on such terms as may be provided by the agreement, of the services of officers employed by the Regional or Area Health Authority or the special health authority ;

but a local authority shall not enter into an agreement in pursuance of paragraph (a) of this subsection in respect of any officer without consulting him.

(2) After section 113(2) of that Act there shall be inserted the following subsection—

(3) An officer whose services are placed at the disposal of a local authority in pursuance of subsection (1A) of this section shall be treated as an officer of the authority for the purposes of any enactment relating to the discharge of local authorities' functions.

152. In section 261(7) of that Act (which relates to the remuneration which officers of local authorities are to be deemed to be receiving for the purposes of the provisions of that Act relating to the transfer of officers and compensation for loss of office), after the words "loss of office" there shall be inserted the words "or for the purposes of the provisions of the National Health Service Reorganisation Act 1973 relating to the transfer of officers and the provisions of section 24 of the Superannuation Act 1972 (which among other things relate to compensation for loss of office)".

Section 57.

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REPEALS

Chapter	Short title	Extent of repeal
37 & 38 Vict. c. 88.	The Births and Deaths Registration Act 1874.	Section 28.
26 Geo. 5 and 1 Edw. 8. c. 49.	The Public Health Act 1936.	In section 143(3), the word "or" where it first occurs. Sections 189 to 191 and 194 to 196. In section 203, in subsection (2) the words "or residence" in both places where they occur and in subsection (6) the words "of health".
7 & 8 Geo. 6. c. 31.	The Education Act 1944.	Sections 48(1), (2), (3) and (5). Section 69(1). In section 78, subsection (1) and in subsection (2) the words from "and may" to "school or establishment". Section 79. In section 114(1), the definitions of "medical inspection" and "medical treatment".
9 & 10 Geo. 6. c. 81.	The National Health Service Act 1946.	In section 2(3), the words from "after consultation with that Council" to "those services". Sections 3(1) and 6 to 14 except section 6(4). Section 16(2). In section 18, the words "in cases of emergency" where they first occur. Sections 19 to 21. In section 22, in subsection (1) the words "including in parti- cular dental care", in sub- section (2) the words "with the approval of the Minister" and subsection (3). Sections 24 to 27, 30 and 31. In section 33, in subsection (1) the words "whether at a health centre or otherwise". In section 36(3)(c), the words from "and secure" to "occurs". Section 37. In section 40(1), the words "whether at a health centre or otherwise". In section 41(1), the words "whether at a health centre or otherwise" in both places where they occur.

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Chapter	Short title	Extent of repeal
9 & 10 Geo. 6. c. 81— <i>cont.</i>	The National Health Service Act 1946— <i>cont.</i>	Section 46. In section 47, the words from “or between” to “health centre”. In section 52(2), the words “except sums required to be transferred to the Hospital Endowment Fund”. Sections 54(1) to (3) and 56. In section 58(3), the words “or a local health authority”. Sections 59(1) and 60. In section 61, the words “and in the making of appointments to the Hospital Management Committee”. Sections 62, 64, 66, 68, 69 and 73. In section 74(c), the words “local health authorities and”. In section 75, subsection (1) and in subsection (2) the words “except regulations made under section 68” and the words from “and such of” to “constituted”. In section 76, the words from “and the enactments” to “that Part” and the words “and repeal”. Section 78. In section 79(1), the definition of “appointed day” and in the definition of “local authority” the words “county borough,”. In Schedule 1, in paragraph 3 the words from “and the Central Council” onwards. Schedules 2 and 3. Part I of Schedule 4. Schedule 5. In Schedule 10, the entries relating to the Poor Law Act 1930, the Yarmouth Naval Hospital Act 1931, the Pharmacy and Poisons Act 1933 and the Public Health Act 1936 (except so much of the entry relating to section 244 of that Act as ends with the word “Minister”).
10 & 11 Geo. 6. c. 19.	The Polish Resettlement Act 1947.	In section 4, the words “, on or after the appointed day for the purposes of that Act,”.

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Chapter	Short title	Extent of repeal
10 & 11 Geo. 6. c. 27.	The National Health Service (Scotland) Act 1947.	In section 37(3)(c), the words from "and secure" to "occurs".
11 & 12 Geo. 6. c. 29.	The National Assistance Act 1948.	In section 21(7), the words from "In this subsection" onwards. Section 47(10).
11 & 12 Geo. 6. c. 43.	The Children Act 1948.	In Schedule 6, paragraph 6(3). In Schedule 3, the entry relating to the National Health Service Act 1946.
12, 13 & 14 Geo. 6. c. 93.	The National Health Service (Amendment) Act 1949.	Sections 3(1), 12, 20(2), 24 and 29(3). In Part I of the Schedule, the entries relating to sections 21, 31(4) and 46 of, and Schedule 3 to, the National Health Service Act 1946.
14 & 15 Geo. 6. c. 31.	The National Health Service Act 1951.	In section 3, the words "as part of the hospital and specialist services under Part II of the National Health Service Act 1946".
14 & 15 Geo. 6. c. 53.	The Midwives Act 1951.	In section 11, in subsection (1) the words from "on or after" to "therein", and subsections (2) and (5). In section 21, the words "local health authority or other". Sections 26, 27 and 33. Section 4.
1 & 2 Eliz. 2. c. 33.	The Education (Miscellaneous Provisions) Act 1953.	In Schedule 1, the entries relating to sections 78, 79 and 114(1) of the Education Act 1944.
5 & 6 Eliz. 2. c. 15.	The Nurses Act 1957.	In section 12(1), the words "situated in such hospital area". In section 33, in subsection (1) the definitions of "Board of Governors", "hospital area" and "teaching hospital", and subsection (2). In Schedule 2, paragraph 1(e) and paragraph 3.
5 & 6 Eliz. 2. c. 28.	The Dentists Act 1957.	In section 36(2)(a), the words "and local authority". In section 42, in subsections (1)(b), (2), (3) and (4) the words "and local authority". In section 43, in subsections (1)(b), (2) and (5) the words "and local authority". In section 50(2), the words "and local authority".

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Chapter	Short title	Extent of repeal
5 & 6 Eliz. 2. c. 28— <i>cont.</i>	The Dentists Act 1957.	In Schedule 1, in paragraphs 13(3) and 14(3) the words "and local authority".
5 & 6 Eliz. 2. c. 44.	The National Health Service (Amendment) Act 1957.	The whole Act.
6 & 7 Eliz. 2. c. 32.	The Opticians Act 1958.	In section 21(2)(b), the words "Part II or" in both places where they occur.
7 & 8 Eliz. 2. c. 72.	The Mental Health Act 1959.	In section 14, in subsection (3) the words from "and the power" onwards, and subsections (4) and (5). Section 16(3). In section 17, in subsection (1) the words "or by the registration authority" and the words "in the area of the authority", and subsection (5). In section 37(2)(a), the words "or board". In section 56, subsection (2)(d). Sections 97 and 98. In section 133(2), the words "and specialist". In section 135(6), the words "under Part III of the National Health Service Act, 1946, or".
8 & 9 Eliz. 2. c. 34.	The Radioactive Substances Act 1960.	In section 14, in subsection (1) the words "or is a teaching hospital within the meaning of the National Health Service Act 1946" and the words ", or (in the case of a teaching hospital) the Board of Governors,".
8 & 9 Eliz. 2. c. 67.	The Public Bodies (Admission to Meetings) Act 1960.	In the Schedule, paragraph 1(g).
10 & 11 Eliz. 2. c. 33.	The Health Visiting and Social Work (Training) Act 1962.	In Schedule 1, paragraph 3(d), (e), (g) and (h).
1963 c. 13.	The Nursing Homes Act 1963.	In section 1(1), in paragraph (b) the word "local" and in paragraph (c) the word "and", and paragraph (d). In section 1(2), the words from "in the case of a first offence" to "subsequent offence".
1963 c. 33.	The London Government Act 1963.	Section 32(1) to (6). In section 45, subsection (3), and in subsection (6) the words from "and in section 20(2)(c)" onwards.

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Chapter	Short title	Extent of repeal
1964 c. 32.	The National Health Service (Hospital Boards) Act 1964.	The whole Act.
1965 c. 62.	The Redundancy Payments Act 1965.	In Schedule 3, paragraphs 2 and 6, and in paragraph 7 the words "section 31(4) of the said Act of 1946 or".
1966 c. 20.	The Ministry of Social Security Act 1966.	In section 4(1), the words "6 or". In section 6, in subsection (1) the words from "include any requirement" to "but" and the word "other", and subsection (2). Section 8(4).
1967 c. 28.	The Superannuation (Miscellaneous Provisions) Act 1967.	In section 7, in subsection (1)(a) the words "local health authority or other".
1967 c. 39.	The National Health Service (Family Planning) Act 1967.	The whole Act.
1967 c. 80.	The Criminal Justice Act 1967.	In Part I of Schedule 3, the entries relating to section 48(2) of the Education Act 1944 and the Nursing Homes Act 1963.
1968 c. 14.	The Public Expenditure and Receipts Act 1968.	In Schedule 3, the entry relating to section 28 of the Births and Deaths Registration Act 1874.
1968 c. 46.	The Health Services and Public Health Act 1968.	In section 1, in subsection (3) the words "hospital and specialist" in the second place where they occur in that subsection as originally enacted. Section 3(3). Sections 5 to 8, 9(1), 10, 11 and 16. In section 18, subsections (1) and (3). Sections 21 to 24 and 27(1). In section 28(1), the words from the beginning to "Hospital Board and". Section 34. In section 36(1)(a), paragraphs (ii) and (iii) except the words "the Dental Estimates Board". In section 39(1), the words "supplied as part of the hospital and specialist services". In section 48, subsection (3). In section 57, the definition of "local health authority".

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Chapter	Short title	Extent of repeal
1968 c. 46— <i>cont.</i>	The Health Services and Public Health Act 1968 — <i>cont.</i>	In section 63, subsections (4) and (7) and in subsection (8) the words from “Board of Governors” to “1946” where it first occurs and the words from “section 4” to “1967”. In section 64(3)(a), the words “the National Health Service (Family Planning) Act 1967”. In section 65, in subsection (2) the words from “and the Greater London Council” onwards and in subsection (3)(b) the words “the National Health Service (Family Planning) Act 1967”. Sections 67 and 69. In section 70(2), the words from “and ‘local health authority’” onwards. Schedule 1. In Schedule 3, in Part I the entry relating to the Midwives Act 1936, in the entry relating to the National Assistance Act 1948 the words from “In section 21(7)” to the words “under Part I of this Act” where they first occur, the entry relating to the Midwives Act 1951, and in the entry relating to the London Government Act 1963 the word “10”; and in Part II, paragraph (b).
1969 c. 47.	The Nurses Act 1969.	In section 6, the words from the beginning to “(in Scotland)”.
1970 c. 42.	The Local Authority Social Services Act 1970.	In section 2, subsections (3), (4), (5) and (6). In section 3, subsection (2). In Schedule 1, the entries relating to sections 29 and 20 of the National Health Service Act 1946 and, in the entry relating to the Mental Health Act 1959, paragraphs (b), (c) and (d).
1970 c. 44.	The Chronically Sick and Disabled Persons Act 1970.	Section 19.
1972 c. 11.	The Superannuation Act 1972.	In section 10(1)(a), the words “local health authority or other”.

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Chapter	Short title	Extent of repeal
1972 c. 20.	The Road Traffic Act 1972.	In section 156, subsection (1)(b) and (c).
1972 c. 58.	The National Health Service (Scotland) Act 1972.	In section 43, subsection (4). In section 47, the words "except subsection (4)" where they first occur. In Schedule 6, paragraphs 7, 98 to 100, in paragraph 130 the words from "for paragraph 1" to "and", and paragraphs 103, 131, 133, 142 and 153. In Schedule 7, the entries relating to the Dentists Act 1957 and the Opticians Act 1958.
1972 c. 70.	The Local Government Act 1972.	In Schedule 14, paragraphs 17 and 48.
1972 c. 72.	The National Health Service (Family Planning) Amendment Act 1972.	The whole Act.
<i>Order in Council</i>		
S.I. 1972 No. 1265.	The Health and Personal Social Services (Northern Ireland) Order 1972.	In Schedule 16, paragraphs 18, 20, 23, 78, 79 and 80.